

From: Braum, Thomas (EGLE)
Sent: 8/25/2023 11:06:53 AM
To: "Barbieri, Charles" <CBarbieri@fosterswift.com>
Cc: "Brady, Donal (EGLE)" <BradyD6@michigan.gov>; "Alexander, Christine (EGLE)" <ALEXANDERC2@michigan.gov>; "Jeff Dietlin" <utilities@cadillac-mi.net>; "Patrick Miller" <pmiller@cadillac-mi.net>; "Cindy Tomaszewski" <ctomaszewski@Cadillac-MI.net>; "Staron, Matthew (EGLE)" <STARONM@michigan.gov>; "Schmitt, Glen (EGLE)" <SCHMITTG1@michigan.gov>; "Lowe, Claire (EGLE)" <LoweC9@michigan.gov>
Subject: RE: Preliminary City of Cadillac Comments on New Draft NPDES permit
Attachments: Response to Pre-Public Notice Comments_Cadillac WWTP.docx, NPDES Cadillac Permit Items.annotated.docx, NPDES Permit-2nd DRAFT for Pre-Public Notice_Cadillac WWTP.pdf

Good morning Chuck,

Our responses to the preliminary comments provided from the City regarding the Cadillac WWTP NPDES Permit No. MI0020257 are attached. Also attached is a revised draft of the NPDES permit based on our response to the Industrial Pretreatment Program item provided.

We would like to set up a time to meet next week to discuss additional questions or comments the City may have. Please let me know if any of the following times would work for a meeting:

- Tuesday August 29th at 9:00 AM
- Tuesday August 29th at 2:00 PM
- Tuesday September 5th at 8:30 AM
- Friday September 8th at 11:00 AM

Thank you and we look forward to hearing back from you.

Sincerely,

Tom Braum

Environmental Quality Analyst

Municipal Permits Unit

Water Resources Division

Michigan Department of Environment, Great Lakes, and Energy

BraumT2@michigan.gov | 517-331-7377

From: Barbieri, Charles <CBarbieri@fosterswift.com>
Sent: Tuesday, August 22, 2023 11:37 AM
To: Staron, Matthew (EGLE) <STARONM@michigan.gov>
Cc: Braum, Thomas (EGLE) <BraumT2@michigan.gov>; Brady, Donal (EGLE) <BradyD6@michigan.gov>; Alexander, Christine (EGLE) <ALEXANDERC2@michigan.gov>; Jeff Dietlin <utilities@cadillac-mi.net>; Patrick Miller <pmiller@cadillac-mi.net>; Cindy Tomaszewski <ctomaszewski@Cadillac-MI.net>
Subject: RE: Preliminary City of Cadillac Comments on New Draft NPDES permit

CAUTION: This is an External email. Please send suspicious emails to abuse@michigan.gov

Thank you for the update.

Charles E. Barbieri

Attorney

Foster Swift Collins & Smith PC

313 South Washington Square

Lansing, MI 48933-2193

Phone: 517.371.8155

Fax: 517.367.7155

cbarbieri@fosterswift.com

www.fosterswift.com



From: Staron, Matthew (EGLE) <STARONM@michigan.gov>

Sent: Tuesday, August 22, 2023 11:32 AM

To: Barbieri, Charles <CBarbieri@fosterswift.com>

Cc: Braum, Thomas (EGLE) <BraumT2@michigan.gov>; Brady, Donal (EGLE) <BradyD6@michigan.gov>;

Alexander, Christine (EGLE) <ALEXANDERC2@michigan.gov>; Jeff Dietlin <utilities@cadillac-mi.net>;

Patrick Miller <pmiller@cadillac-mi.net>; Cindy Tomaszewski <ctomaszewski@Cadillac-MI.net>

Subject: RE: Preliminary City of Cadillac Comments on New Draft NPDES permit

[CAUTION - EXTERNAL EMAIL] DO NOT reply, click links, or open attachments unless you have verified the sender and know the content is safe.

Hi Chuck.

We are preparing responses to your written comments. Once we send those out and give you and your client a chance to review them, we can set up a time to meet. I appreciate your understanding in our goal to issue the permit by Oct. 1.

Matt.

From: Barbieri, Charles <CBarbieri@fosterswift.com>

Sent: Tuesday, August 22, 2023 11:24 AM

To: Staron, Matthew (EGLE) <STARONM@michigan.gov>

Cc: Braum, Thomas (EGLE) <BraumT2@michigan.gov>; Brady, Donal (EGLE) <BradyD6@michigan.gov>;

Alexander, Christine (EGLE) <ALEXANDERC2@michigan.gov>; Jeff Dietlin <utilities@cadillac-mi.net>;

Patrick Miller <pmiller@cadillac-mi.net>; Cindy Tomaszewski <ctomaszewski@Cadillac-MI.net>

Subject: RE: Preliminary City of Cadillac Comments on New Draft NPDES permit

CAUTION: This is an External email. Please send suspicious emails to abuse@michigan.gov

This message was sent securely using Zix®

8-22-23

Matt, I wanted to see if we can set up a time this week to have the follow-up call on this, given the schedule the Department has set. Do you have some possible dates and times we can shoot for? Thanks. Chuck

Charles E. Barbieri

Attorney

Foster Swift Collins & Smith PC

313 South Washington Square

Lansing, MI 48933-2193

Phone: 517.371.8155

Fax: 517.367.7155

cbarbieri@fosterswift.com

www.fosterswift.com

FOSTER SWIFT
FOSTER SWIFT COLLINS & SMITH PC & ATTORNEYS

From: Barbieri, Charles

Sent: Friday, August 18, 2023 3:31 PM

To: Staron, Matthew (EGLE) <STARONM@michigan.gov>

Cc: Braum, Thomas (EGLE) <BraumT2@michigan.gov>; Brady, Donal (EGLE) <BradyD6@michigan.gov>;

Alexander, Christine (EGLE) <ALEXANDERC2@michigan.gov>; Jeff Dietlin <utilities@cadillac-mi.net>;

Patrick Miller <pmiller@cadillac-mi.net>; Cindy Tomaszewski <ctomaszewski@Cadillac-MI.net>

Subject: Preliminary City of Cadillac Comments on New Draft NPDES permit

8-18-23

Matt, at the risk of being unable to understand some of the comments that were discussed internally and with the expectation that we can have a follow-up remote meeting that includes my client representatives, let me offer this preliminary description of issues that the City has about some of the permit items. We would like to see if some of these concerns could be eliminated now so that additional comments on the permit are not needed. Please let us know when we can discuss next week. Thanks. Chuck

Charles E. Barbieri

Attorney

Foster Swift Collins & Smith PC

313 South Washington Square

Lansing, MI 48933-2193

Phone: 517.371.8155

Fax: 517.367.7155

cbarbieri@fosterswift.com

www.fosterswift.com



DISCLAIMER/CONFIDENTIALITY: This communication, along with any documents, files or attachments, is intended only for the use of the addressee and may contain legally privileged and confidential information. Any document attached is a legal document and should not be changed or altered without the knowledge and approval of legal counsel. The sender takes no responsibility for any alterations, additions, revisions or deletions to any such document. Due to software and printer variations, documents printed at the recipient's location may vary from the original printed document.

This message was secured by [Zix](#)®.

This message was secured by [Zix](#)®.

ATTACHMENT NAME:

Response to Pre-Public Notice Comments_Cadillac WWTP.docx

ATTACHMENT TYPE:

Microsoft Office 12+, Office Open XML (OOXML/OpenXML): document (DOCX)

August 24, 2023

City of Cadillac
200 North Lake Street
Cadillac, MI 49601

NPDES Permit No. MI0020257

RE: Preliminary City of Cadillac Comments on New Draft NPDES permit

We have reviewed the comments provided regarding the draft NPDES permit for the City of Cadillac Wastewater Treatment Plant and offer the following responses.

Page 3 – CBOD5 and Ammonia Nitrogen

Cadillac needs further explanation of permit writer's judgment. The suggestion that antidegradation is at risk deserves discussion. The apparent absence of previous calculations seems to work to the City's disadvantage.

The facility's NPDES permit that took effect on November 1, 2013 and expired on October 1, 2017 included final effluent limitations of 7 mg/l as a monthly average and 10 mg/l as a daily maximum for CBOD5 and 0.9 mg/l as a monthly average and 2.0 mg/l as a daily maximum for ammonia nitrogen during the May through November season.

In the Spring of 2017, the Department's Cadillac District Office communicated a request to Permits Section on behalf of the permittee that the month of May be removed from this summer season due to concerns regarding the facility's northern location and the potential for the cold-weather season to extend into May. To accommodate this request and provide relief from the extended summer season limits, Permits Section developed conventional effluent limits using a new season structure resulting in October and November being separated into its own season. As part of the process to revise the existing effluent limits and season structure, the limits the facility was capable of meeting during the October through November season were determined through percentile calculations using existing effluent data. Because the resulting limits were not recommended water-quality based effluent limits, or limits based on water quality standards, Permit Writer Judgement was used by Permits Section as the basis for the calculated limits. This season structure and associated CBOD5 and ammonia nitrogen limits were incorporated into the facility's current NPDES permit that took effect September 1, 2019, and expired October 1, 2022.

At the time of that reissuance, the draft permit, including the proposed final effluent limits for CBOD5 and ammonia nitrogen, were provided to the facility for comment. The revised season structure and limits were not addressed during this comment period and the permit was subsequently issued.

Available DMR data for CBOD5 since the effective date of the permittee's current NPDES permit indicates that the facility has only had three exceedances of the daily maximum limit of 17 mg/l during the October through November season, two of which were attributed to lab error. There were no exceedances of the 11 mg/l monthly average limit during this time.

Available DMR data for ammonia nitrogen since the effective date of the permittee's current NPDES permit indicates that the facility has only had two exceedances of the daily maximum limit of 2.8 mg/l during the October through November season and one exceedance of the 1.6 mg/l monthly average limit.

R 323.1098 Antidegradation of the Part 4 Rules applies to any NPDES permit action that is anticipated to result in a new or increased loading of pollutants to surface waters of the state. Revising the existing final effluent limits would be considered an increased loading of pollutants to surface waters of the state. Antidegradation requirements do not allow these limits to be made less stringent without a demonstration that that identifies the social or economic development and benefits that will be foregone if the change is not allowed. The permittee is free to submit an antidegradation demonstration showing the benefits that would be foregone if these limits are not revised.

Page 3 – Ammonia

The added requirements in note k. on page 8 are not explained adequately. Added costs are a concern.

The requirements in Part I.A.1.k. Ammonia Nitrogen Certification on page 8 are being added to NPDES permits as part of the Department's strategy to implement new chronic toxicity criterion for ammonia nitrogen that was adopted by the Department in 2019. Limits based on the new criterion are being imposed on all treatment facilities where applicable across the state. It was determined that the facility is capable of meeting the revised ammonia nitrogen limitations at the facility's current actual flow rate; however, a schedule of compliance has been included to allow the facility to certify that the new limits can be met at the current design flow of 3.2 MGD. The schedule has been included to allow for this evaluation to take place before the limits become effective to allow for operational changes or permit modifications to be completed if needed. For more information regarding this implementation strategy, please see the attached memo, "Factors for Water Resources Division Staff to Consider When Implementing the 2019 Quality Values for Ammonia Update."

Page 4 – Arsenic, Beryllium, Cadmium, Silver, Benzidine, Bromomethane (see page 6, note f.)

Please explain why parameters/limits for these are needed. The City wants to explain its concerns about relying on any suggested historical involving those constituents. For example, inclusion of benzidine is not justified when data do not support. Bromoethane is a common lab artifact, and no real source is indicated. Added costs are not justified.

Arsenic

Arsenic monitoring was conducted as part of the conditions in the current NPDES permit under Part I.A.3 Additional Monitoring Requirements. Concentrations of arsenic in the Outfall 001 final effluent used for the reasonable potential analysis include the following results: 5/9/2018 (<1.0 ug/l collected during a CSI), 10/23/2019 (76 ug/l), 5/5/2020 (<1.0 ug/l), 3/7/2021 (<1.0 ug/l), and 8/15/2021 (<1.0 ug/l). All final effluent results were samples collected and reported by the facility apart from the sample collected during the 2018 CSI.

These data indicate there is a reasonable potential for arsenic to be discharged at concentrations exceeding Michigan WQS. Since reasonable potential is demonstrated, our rules require final effluent limitations and monitoring requirements to be included in the draft

permit. A frequency of weekly is included to characterize the final effluent for two years whereafter the permittee can request a monitoring frequency reduction to no less than monthly. The weekly monitoring is based on there being reasonable potential but also due to the October 2019 result (76 ug/l) that suggests a higher monitoring frequency is necessary to characterize the effluent over time. The 2019 result is almost 5 times greater than the WQBEL.

Beryllium

Beryllium monitoring was conducted as part of the conditions in the current NPDES permit under Part I.A.3 Additional Monitoring Requirements. Concentrations of beryllium in the Outfall 001 final effluent used for the reasonable potential analysis include the following results: 10/23/2019 (8.1 ug/l), 5/5/2020 (<0.4 ug/l), 3/7/2021 (<1.0 ug/l), and 8/15/2021 (<1.0 ug/l). All final effluent results were samples collected and reported by the facility.

These data indicate there is a reasonable potential for beryllium to be discharged at concentrations exceeding Michigan WQS. Since reasonable potential is demonstrated, our rules require final effluent limitations and monitoring requirements to be included in the draft permit. A frequency of weekly is included to characterize the final effluent for two years whereafter the permittee can request a monitoring frequency reduction to no less than monthly. The weekly monitoring is based on there being reasonable potential but also due to the October 2019 result (8.1 ug/l) that suggests a higher frequency is necessary to characterize the effluent over time. The 2019 result is almost twice the WQBEL.

Cadmium

Cadmium monitoring was conducted as part of the conditions in the current NPDES permit under Part I.A.3 Additional Monitoring Requirements. Concentrations of cadmium in the Outfall 001 final effluent used for the reasonable potential analysis include the following results: 5/9/2018 CSI (<0.2 ug/l), 10/23/2019 (9.5 ug/l), 5/5/2020 (0.21 ug/l), 3/7/2021 (<0.2 ug/l), and 8/15/2021 (<0.2 ug/l). All final effluent results were samples collected and reported by the facility apart from the sample collected during the 2018 CSI.

These data indicate there is a reasonable potential for cadmium to be discharged at concentrations exceeding Michigan WQS. Since reasonable potential is demonstrated, our rules require final effluent limitations and monitoring requirements to be included in the draft permit. A frequency of weekly is included to characterize the final effluent for two years whereafter the permittee can request a monitoring frequency reduction to no less than monthly. The weekly monitoring is based on there being reasonable potential but also due to the October 2019 result (9.5 ug/l) that suggests a higher frequency is necessary to characterize the effluent over time. The 2019 result is more than twice the WQBEL.

Silver

Silver monitoring was conducted as part of the conditions in the current NPDES permit under Part I.A.3 Additional Monitoring Requirements or by other sampling performed by the permittee. Concentrations of silver in the Outfall 001 final effluent used for the reasonable potential analysis include the following results: 5/9/2018 CSI (<0.2 ug/l), 10/23/2019 (1.8 ug/l), 5/5/2020 (0.2 ug/l), 7/11/2020 (<0.5 ug/l), 7/14/2020 (<0.5 ug/l), 3/7/2021 (<0.5 ug/l), and 8/15/2021 (<0.5 ug/l). All final effluent results were samples collected and reported by the facility apart from the sample collected during the 2018 CSI.

These data indicate there is a reasonable potential for silver to be discharged at concentrations exceeding Michigan WQS. Since reasonable potential is demonstrated, our rules require final

effluent limitations and monitoring requirements to be included in the draft permit. A frequency of weekly is included to characterize the final effluent for two years whereafter the permittee can request a monitoring frequency reduction to no less than monthly. The weekly monitoring is based on there being reasonable potential but also due to the October 2019 result (1.8 ug/l) that suggests a higher frequency is necessary to characterize the effluent over time. The 2019 result is almost 1.5 times the WQBEL.

Benzidine

Benzidine monitoring was conducted as part of the conditions in the current NPDES permit under Part I.A.3 Additional Monitoring Requirements. Concentrations of benzidine in the Outfall 001 final effluent used for the reasonable potential analysis include the following results: 10/23/2019 (<0.1 ug/l), 5/5/2020 (<0.1 ug/l), 3/8/2021 (<0.1 ug/l), and 8/16/2021 (1.8 ug/l – Lab stated result is defensible), and 8/31/2021 (<0.1 ug/l – reanalysis of 8/16/2021 sample that was left over, but Hold Time Exceeded). All final effluent results were samples collected and reported by the facility.

These data indicate there is a reasonable potential for benzidine to be discharged at concentrations exceeding Michigan WQS. Since reasonable potential is demonstrated, our rules require final effluent limitations and monitoring requirements to be included in the draft permit. A frequency of weekly is included to characterize the final effluent for two years whereafter the permittee can request a monitoring frequency reduction to no less than annually. The weekly monitoring is based on there being reasonable potential but also due to the August 16, 2021 result (1.8 ug/l) that suggests a higher frequency is necessary to characterize the effluent over time. The 2021 result is more than 15 times the WQBEL.

Bromomethane

Bromomethane monitoring was conducted as part of the conditions in the current NPDES permit under Part I.A.3 Additional Monitoring Requirements. Concentrations of bromomethane in the Outfall 001 final effluent used for the reasonable potential analysis include the following results: 10/23/2019 (<1.0 ug/l), 5/5/2020 (<1.0 ug/l), 3/7/2021 (<5.0 ug/l), and 8/16/2021 (<5.0 ug/l). All final effluent results were samples collected and reported by the facility.

The samples collected on 3/7/2021 and the 8/16/2021 were analyzed using quantification level that is not considered sufficiently sensitive. The 2019 and 2020 samples were analyzed and reported by Paragon Laboratories. Paragon Laboratories reported a quantification level that is considered sufficiently sensitive. The 2021 samples were analyzed and reported by Fibertec Environmental Services which used a lesser sensitive quantification level. It is unclear why a change in laboratories occurred, but this change resulted in one lab using a sufficiently sensitive quantification level to a different lab using a lesser sensitive quantification level.

A monitoring requirement of quarterly is recommended to characterize Bromomethane as sufficiently sensitive quantification levels were not followed during two of the samples. The draft permit does include a monitoring frequency allowance to be requested after two years of quarterly monitoring to reduce the frequency to annually.

WET Chronic Toxicity

Limit of 1.1 with added requirements in note j. on pp7-8 is unjustified based on August 2019 result which was obtained or recorded prior to commencement of current permit. Other similar earlier period data, which were not elevated, were not considered as well. Quicker phaseout should occur even with any WET limit. Added costs are a concern.

The Whole Effluent Toxicity (WET) results used for the reasonable potential analysis include all results reported during the period of November 2017 through August 2021. This dataset represents the WET results reported where the previous reasonable potential analysis ended up to the current results. We disagree the August 2019 results should be considered unjustified as the test/result was obtained or recorded prior to commencement of the current permit. In fact, the test was conducted a few weeks before the current permit went into effect.

In addition, we included WET test results for the reasonable potential analysis between the period of November 2017 through May 2019 as these results had not been evaluated for reasonable potential during the previous WQBEL review as they had yet to be conducted/reported.

The two August 2019 WET tests on *Ceriodaphnia dubia* indicate the toxicity increased over the month of August. In fact, the initial WET test produced a result of 1.6 TUC with the second test producing a result of 5.6 TUC, a 3.5 time increase in toxicity from one test to the next. This suggests that whatever was causing the toxicity never dissipated and got worse in intensity. No WET testing was conducted in September 2019 to determine if the toxicity was persistent. However, WET testing in October and December 2019 did not report any toxicity.

We used all test results for the period of November 2017 through August 2021 for the reasonable potential analysis which indicates there is a reasonable potential for the Outfall 001 final effluent to be toxic. Since reasonable potential is validated, our rules require limits/monitoring to be included in the draft permit. The draft permit includes a monitoring frequency of quarterly instead of more frequent testing as toxicity during this time period was limited to August 2019 and did not occur during any other months. In addition, the draft permit does include monitoring frequency reduction language.

Page 16 – Asset Management

Requirement of 9.a. does not make sense as a compliance item as that submission occurred earlier.

The asset management plan was originally due on March 1, 2014. The asset management plan was received on August 12, 2019 but has not yet been approved. These dates are included in the permit to maintain the original date by which the asset management plan was required to be submitted, acknowledge that the submittal was received, and show that the plan has not yet been approved by the Department. Additional action is only necessary by the facility if the Department requires revisions to the submittal currently under review. Once approved, the asset management plan approval date will be included here.

Page 22 – Industrial Pretreatment

Requirements for local limit evaluation is unjustified. City already has conducted prior evaluation of arsenic, cadmium and silver for local limits. Added costs for additional evaluation are not warranted.

There have been significant compliance problems with the Industrial Pretreatment Program (IPP) for the facility which have resulted in multiple violation notices issued to the City. The toxic parameters listed in the referenced requirement, Part I.C.1.n., have had final effluent limits added at Monitoring Point 001A in Part I.A.1. Of the toxic parameters added, Beryllium and Benzidine were not considered as pollutants of concern under the most recent local limits review. Parameters with an NPDES effluent limit are considered pollutants of concern under local limits reviews and have been included under Part 1.C.1.n for this reason. The toxic parameters Arsenic, Cadmium, and Silver were considered pollutants of concern in the most recent local limits review, however at the time of that review these parameters did not have NPDES effluent limits. The local limits have therefore not been evaluated to determine if they protective against violations of the new NPDES effluent limits.

The Department has identified that Bromomethane can be removed from the parameter list in Part I.C.1.n. as a limit has not been included for this parameter. The attached draft permit has been revised accordingly.

Sincerely,

Tom Braum
Environmental Quality Analyst
Municipal Permits Unit, Water Resources Division
Michigan Department of Environment, Great Lakes, and Energy
BraumT2@michigan.gov | 517-331-7377

Enclosure

cc/enc: Charles Barbieri
Jeffrey Dietlin
Patrick Miller
Cindy Tomaszewski
Matt Staron
Donal Brady
Claire Lowe
Christine Alexander
Brian Jankowski
Glen Schmitt
Phillip DePetro

ATTACHMENT NAME:

NPDES Cadillac Permit Items.annotated.docx

ATTACHMENT TYPE:

Microsoft Office 12+, Office Open XML (OOXML/OpenXML): document (DOCX)

August 18, 2023

NPDES CADILLAC PERMIT ITEMS

ITEM	CONCERN	RESPONSE/RESOLUTION
p3 CBOD5	Cadillac needs further explanation of permit writer's judgment. The suggestion that antidegradation is at risk deserves discussion. The apparent absence of previous calculations seems to work to the City's disadvantage.	Need to layout history. In 2018, facility requested we change the ay we broke out the seasons. Therefore we developed alternative limits in order to accommodate that request. The facility can submit an AD demonstration for reief fdrom those limits but it would be a high bar. These are agreed upon likimits to already get relief from extended summer limits. Limits were developed, approved, and are able to be met.
Ammonia	Similar concern. Please explain permit writer's judgment based on antidegradation. The added requirements in note k. on page 8 are not explained adequately. Added costs are a concern.	Talk about new ammonia criteria, effluent data shows they are able to meet the limit. Imposijng it on all facilities where applicable. We want to ensure you can meet if if flows increase. SOC provided, applied across the state
p4 Arsenic, beryllium, cadmium, silver, benzidine, bromomethane See p6, note f.	Please explain why parameters/limits for these are needed. The City wants to explain its concerns about relying on any suggested historical involving those constituents. For example, inclusion of benzidine is not justified when data do not support. Bromoethane is a common lab artifact, and no	Glen

ITEM	CONCERN	RESPONSE/RESOLUTION
	real source is indicated. Added costs are not justified.	
WET Chronic toxicity	Limit of 1.1 with added requirements in note j. on pp7-8 is unjustified based on August 2019 result which was obtained or recorded prior to commencement of current permit. Other similar earlier period data, which were not elevated, were not considered as well. Quicker phaseout should occur even with any WET limit. Added costs are a concern.	Glen
p16 Asset Management	Requirement of 9.a. does not make sense as a compliance item as that submission occurred earlier.	
p22 Industrial Pretreatment	Requirements for local limit evaluation is unjustified. City already has conducted prior evaluation of arsenic, cadmium and silver for local limits. Added costs for additional evaluation are not warranted.	

99999:CBARBIER:7351720-1

26499:00001:7347070-1

ATTACHMENT NAME:

NPDES Permit-2nd DRAFT for Pre-Public Notice_Cadillac WWTP.pdf

ATTACHMENT TYPE:

Adobe Portable Document Format (PDF) compound image

PERMIT NO. MI0020257

STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENT, GREAT LAKES,
AND ENERGY

**AUTHORIZATION TO DISCHARGE UNDER THE
NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM**

In compliance with the provisions of the federal Clean Water Act (federal Water Pollution Control Act, 33 U.S.C., Section 1251 *et seq.*, as amended); Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA); Part 41, Sewerage Systems, of the NREPA; and Michigan Executive Order 2019-06,

City of Cadillac
200 North Lake Street
Cadillac, MI 49601

is authorized to discharge from the **Cadillac Wastewater Treatment Plant** located at

1121 Plett Road
Cadillac, MI 49601

designated as **Cadillac WWTP**

to the receiving water named the Clam River in accordance with effluent limitations, monitoring requirements, and other conditions set forth in this permit.

This permit is based on a complete application submitted on September 21, 2022.

This permit takes effect on DRAFT. The provisions of this permit are severable. After notice and opportunity for a hearing, this permit may be modified, suspended, or revoked in whole or in part during its term in accordance with applicable laws and rules. On its effective date, this permit shall supersede National Pollutant Discharge Elimination System (NPDES) Permit No. MI0020257 (expiring October 1, 2022).

This permit and the authorization to discharge shall expire at midnight on **October 1, 2027**. In order to receive authorization to discharge beyond the date of expiration, the permittee shall submit an application that contains such information, forms, and fees as are required by the Michigan Department of Environment, Great Lakes, and Energy (Department) by **April 4, 2027**.

Issued DRAFT.

Christine Alexander, Manager
Permits Section
Water Resources Division

PERMIT FEE REQUIREMENTS

In accordance with Section 324.3120 of the NREPA, the permittee shall make payment of an annual permit fee to the Department for each October 1 the permit is in effect regardless of occurrence of discharge. The permittee shall submit the fee in response to the Department's annual notice. Payment may be made electronically via the Department's MiEnviro Portal system. The MiEnviro Portal website is located at <https://mienviro.michigan.gov/ncore/>. Payment shall be submitted or postmarked by January 15 for notices mailed by December 1. Payment shall be submitted or postmarked no later than 45 days after receiving the notice for notices mailed after December 1.

Annual Permit Fee Classification: Municipal Major, less than 10 MGD (Individual Permit)

In accordance with Section 324.3132 of the NREPA, the permittee shall make payment of an annual biosolids land application fee to the Department if the permittee land applies biosolids. The permittee shall submit the fee in response to the Department's annual notice. Payment may be made electronically via the Department's MiEnviro Portal system. The MiEnviro Portal website is located at <https://mienviro.michigan.gov/ncore/>. Payment shall be submitted or postmarked no later than January 31 of each year for notices mailed by December 15. Payment shall be submitted or postmarked no later than 45 days after receiving the notice for notices mailed after December 15.

CONTACT INFORMATION

Unless specified otherwise, all contact with the Department required by this permit shall be made to the Cadillac District Office of the Water Resources Division. The Cadillac District Office is located at 120 West Chapin Street, Cadillac, MI 49601-2158, Telephone: 231-775-3960, Fax: 231-775-1511.

CONTESTED CASE INFORMATION

Any person who is aggrieved by this permit may file a sworn petition with the Michigan Administrative Hearing System within the Michigan Department of Licensing and Regulatory Affairs, c/o the Michigan Department of Environment, Great Lakes, and Energy, setting forth the conditions of the permit which are being challenged and specifying the grounds for the challenge. The Department of Licensing and Regulatory Affairs may reject any petition filed more than 60 days after issuance as being untimely.

PART I**Section A. Limitations and Monitoring Requirements****1. Final Effluent Limitations, Monitoring Point 001A**

During the period beginning on the effective date of this permit and lasting until the expiration date of this permit, the permittee is authorized to discharge treated municipal wastewater from Monitoring Point 001A through Outfall 001. Outfall 001 discharges to the Clam River at Latitude 44.2657, Longitude -85.3984. Such discharge shall be limited and monitored by the permittee as specified below.

Parameter	Maximum Limits for Quantity or Loading				Maximum Limits for Quality or Concentration				Monitoring Frequency	Sample Type
	Monthly	7-Day	Daily	Units	Monthly	7-Day	Daily	Units		
Flow	(report)	---	(report)	MGD	---	---	---	---	Daily	Report Total Daily Flow
Carbonaceous Biochemical Oxygen Demand (CBOD5)										
June – September	190	270	(report)	lbs/day	7	---	10	mg/l	5x Weekly	24-Hr Composite
October – November	290	450	(report)	lbs/day	11	---	17	mg/l	5x Weekly	24-Hr Composite
December – March	610	910	(report)	lbs/day	23	---	34	mg/l	5x Weekly	24-Hr Composite
April – May	450	670	(report)	lbs/day	17	---	25	mg/l	5x Weekly	24-Hr Composite
Total Suspended Solids (TSS)										
June – September	530	800	(report)	lbs/day	20	30	(report)	mg/l	5x Weekly	24-Hr Composite
October – May	800	1,200	(report)	lbs/day	30	45	(report)	mg/l	5x Weekly	24-Hr Composite
Ammonia Nitrogen (as N) – See k. below										
Through September 30, 2026										
June – September	24	53	(report)	lbs/day	0.9	---	2.0	mg/l	5x Weekly	24-Hr Composite
October – November	43	75	(report)	lbs/day	1.6	---	2.8	mg/l	5x Weekly	24-Hr Composite
December – March	99	---	(report)	lbs/day	3.7	---	(report)	mg/l	5x Weekly	24-Hr Composite
April – May	130	---	(report)	lbs/day	4.8	---	(report)	mg/l	5x Weekly	24-Hr Composite
Beginning October 1, 2026										
June – September	24	53	(report)	lbs/day	0.9	---	2.0	mg/l	5x Weekly	24-Hr Composite
October – November	43	75	(report)	lbs/day	1.6	---	2.8	mg/l	5x Weekly	24-Hr Composite
December – March	99	---	(report)	lbs/day	3.7	---	(report)	mg/l	5x Weekly	24-Hr Composite
April – May	80	---	(report)	lbs/day	3.0	---	(report)	mg/l	5x Weekly	24-Hr Composite

PART I

Section A. Limitations and Monitoring Requirements

	Maximum Limits for Quantity or Loading				Maximum Limits for Quality or Concentration				Monitoring Frequency	Sample Type
Parameter	Monthly	7-Day	Daily	Units	Monthly	7-Day	Daily	Units		
Total Phosphorus (as P)										
May – March	13	---	(report)	lbs/day	0.5	---	(report)	mg/l	5x Weekly	24-Hr Composite
April	17	---	(report)	lbs/day	0.65	---	(report)	mg/l	5x Weekly	24-Hr Composite
Total Copper	---	---	(report)	lbs/day	---	---	(report)	ug/l	Weekly	24-Hr Composite
Total Arsenic	0.43	---	(report)	lbs/day	16	---	(report)	ug/l	Weekly	24-Hr Composite
Total Beryllium	0.11	---	(report)	lbs/day	4.1	---	(report)	ug/l	Weekly	24-Hr Composite
Total Cadmium	0.11	0.32	(report)	lbs/day	4.1	---	12	ug/l	Weekly	24-Hr Composite
Total Silver	0.037	---	(report)	lbs/day	1.4	---	(report)	ug/l	Weekly	24-Hr Composite
Chloride	---	---	---	---	---	---	(report)	mg/l	Monthly	24-Hr Composite
Sulfate	---	---	---	---	---	---	(report)	mg/l	Monthly	24-Hr Composite
Acute Toxicity – Fathead Minnow	---	---	---	---	---	---	1.0	TU _A	Quarterly	24-Hr Composite
Acute Toxicity – <i>C. dubia</i>	---	---	---	---	---	---	1.0	TU _A	Quarterly	24-Hr Composite
							Individual Chronic Value			
Chronic Toxicity – Fathead Minnow	---	---	---	---	1.1	---	(report)	TU _C	Quarterly	24-Hr Composite
Chronic Toxicity – <i>C. dubia</i>	---	---	---	---	1.1	---	(report)	TU _C	Quarterly	24-Hr Composite
							Maximum Daily			
Fecal Coliform Bacteria	---	---	---	---	200	400	(report)	cts/ 100 ml	5x Weekly	Grab
Perfluorooctanesulfonic Acid (PFOS)	---	---	---	---	---	---	(report)	ng/l	3x Annual	Grab
Available Cyanide	0.16	---	(report)	lbs/day	5.9	---	(report)	ug/l	Monthly	Grab
Total Benzidine	0.0032	---	(report)	lbs/day	0.12	---	(report)	ug/l	Weekly	Grab
Total Bromomethane	---	---	(report)	lbs/day	---	---	(report)	ug/l	Quarterly	Grab

PART I

Section A. Limitations and Monitoring Requirements

	Maximum Limits for Quantity or Loading				Maximum Limits for Quality or Concentration				Monitoring Frequency	Sample Type
Parameter	Monthly	7-Day	Daily	Units	Monthly	7-Day	Daily	Units		
Total Mercury										
Corrected	(report)	---	(report)	lbs/day	(report)	---	(report)	ng/l	Quarterly	Calculation
Uncorrected	---	---	---	---	---	---	(report)	ng/l	Quarterly	Grab
Field Duplicate	---	---	---	---	---	---	(report)	ng/l	Quarterly	Grab
Field Blank	---	---	---	---	---	---	(report)	ng/l	Quarterly	Preparation
Laboratory Method Blank	---	---	---	---	---	---	(report)	ng/l	Quarterly	Preparation
	12-Month Rolling Avg				12-Month Rolling Avg					
Total Mercury	0.000053	---	---	lbs/day	2.0	---	---	ng/l	Quarterly	Calculation
					Minimum % Monthly		Minimum % Daily			
TSS Minimum % Removal										
October – May	---	---	---	---	85	---	(report)	%	Monthly	Calculation
					Minimum Daily		Maximum Daily			
pH	---	---	---	---	6.5	---	9.0	S.U.	5x Weekly	Grab
Dissolved Oxygen										
May – November	---	---	---	---	6.0	---	---	mg/l	5x Weekly	Grab
December – April	---	---	---	---	5.0	---	---	mg/l	5x Weekly	Grab

The following design flow was used in determining the above limitations, but is not to be considered a limitation or actual capacity: 3.2 MGD.

- a. Narrative Standard
The receiving water shall contain no turbidity, color, oil films, floating solids, foams, settleable solids, or deposits as a result of this discharge in unnatural quantities which are or may become injurious to any designated use.
- b. Sampling Locations
Samples for CBOD5, TSS, Ammonia Nitrogen, Total Phosphorus, Total Copper, Total Arsenic, Total Beryllium, Total Cadmium, Total Silver, Chloride, Sulfate, Acute Toxicity, and Chronic Toxicity shall be taken prior to disinfection. Samples for Fecal Coliform Bacteria, PFOS, Available Cyanide, Total Benzidine, Total Bromomethane, Total Mercury, pH, and Dissolved Oxygen shall be taken after disinfection. The Department may approve alternate sampling locations that are demonstrated by the permittee to be representative of the effluent.
- c. Quarterly Monitoring and 3x Annual Monitoring
Quarterly samples shall be taken during the months of January, April, July, and October. 3x Annual samples shall be taken during the months of January, May, and September. If the facility does not discharge during these months, the permittee shall sample the next discharge occurring during the period in question. If the facility does not discharge during the period in question, a sample is not required for that period. For any month in which a sample is not taken, the permittee shall enter "G" on the Discharge Monitoring Report (DMR). (For purposes of reporting on the Daily tab of the DMR, the permittee shall enter "G" on the first day of the month only).

PART I**Section A. Limitations and Monitoring Requirements****d. Ultraviolet Disinfection**

It is understood that ultraviolet light will be used to achieve compliance with the fecal coliform limitations. If disinfection other than ultraviolet light will be used, the permittee shall notify the Department in accordance with Part II.C.12. of this permit.

e. Percent Removal Requirements

Monthly percent removal shall be calculated based on the monthly average effluent TSS concentrations and the monthly average influent concentrations for approximately the same period. Daily percent removal shall be calculated based on the daily effluent TSS concentrations and the daily influent concentrations for the same day. Reporting of Daily percent removal is only required on days on which an influent sample is obtained. The calculation shall be made as follows for each parameter: Percent removal = (influent concentration - effluent concentration) / influent concentration x 100.

f. Monitoring Frequency Reduction for Available Cyanide, Total Arsenic, Total Benzidine, Total Beryllium, Total Bromomethane, Total Cadmium, and/or Total Silver

After the submittal of 24 months of data, the permittee may request, in writing, Department approval for a reduction in monitoring frequency for Available Cyanide, Total Arsenic, Total Benzidine, Total Beryllium, Total Bromomethane, Total Cadmium, and/or Total Silver. This request shall contain an explanation as to why the reduced monitoring is appropriate. Upon receipt of written approval and consistent with such approval, the permittee may reduce the monitoring frequency indicated in Part I.A.1. of this permit. The monitoring frequency for Available Cyanide, Total Benzidine, and Total Bromomethane shall not be reduced to less than annually. The monitoring frequency for Total Arsenic, Total Beryllium, Total Cadmium, and Total Silver shall not be reduced to less than monthly. The Department may revoke the approval for reduced monitoring at any time upon notification to the permittee.

g. Monitoring Frequency Reduction for Perfluorooctanesulfonic Acid (PFOS)

After the submittal of at least 10 equally spaced sample results obtained over a minimum of three (3) months, the permittee may request, in writing, Department approval of a reduction in monitoring frequency for PFOS. This request shall contain an explanation as to why the reduced monitoring is appropriate. Upon receipt of written approval and consistent with such approval, the permittee may reduce the monitoring frequency indicated in Part I.A.1. of this permit. The monitoring frequency for PFOS shall not be reduced to less than annually. The Department may revoke the approval for reduced monitoring at any time upon notification to the permittee.

h. Final Effluent Limitation for Total Mercury

The final limit for total mercury is the Discharge Specific Level Currently Achievable (LCA) based on a multiple discharger variance from the WQBEL of 1.3 ng/l, pursuant to Rule 1103(9) of the Water Quality Standards. Compliance with the LCA shall be determined as a 12-month rolling average, the calculation of which may be done using blank-corrected sample results. The 12-month rolling average shall be determined by adding the present monthly average result to the preceding 11 monthly average results then dividing the sum by 12. For facilities with quarterly monitoring requirements for total mercury, quarterly monitoring shall be equivalent to three (3) months of monitoring in calculating the 12-month rolling average. Facilities that monitor more frequently than monthly for total mercury must determine the monthly average result, which is the sum of the results of all data obtained in a given month divided by the total number of samples taken, in order to calculate the 12-month rolling average. If the 12-month rolling average for any quarter is less than or equal to the LCA, the permittee will be considered to be in compliance for total mercury for that quarter, provided the permittee is also in full compliance with the Pollutant Minimization Program for Total Mercury, set forth in Part I.A.4. of this permit.

PART I**Section A. Limitations and Monitoring Requirements****i. Total Mercury Testing and Additional Reporting Requirements**

The analytical protocol for total mercury shall be in accordance with EPA Method 1631, Revision E, "Mercury in Water by Oxidation, Purge and Trap, and Cold Vapor Atomic Fluorescence Spectrometry," EPA-821-R-02-019, August 2002. The quantification level for total mercury shall be 0.5 ng/l, unless a higher level is appropriate because of sample matrix interference. Justification for higher quantification levels shall be submitted to the Department within 30 days of such determination.

The use of clean technique sampling procedures is required unless the permittee can demonstrate to the Department that an alternate sampling procedure is representative of the discharge. Guidance for clean technique sampling is contained in EPA Method 1669, "Sampling Ambient Water for Trace Metals at EPA Water Quality Criteria Levels (Sampling Guidance)," EPA-821-R96-001, July 1996. Information and data documenting the permittee's sampling and analytical protocols and data acceptability shall be submitted to the Department upon request.

In order to demonstrate compliance with EPA Method 1631E and EPA Method 1669, the permittee shall report, on the daily sheet, the analytical results of all field blanks and field duplicates collected in conjunction with each sampling event, as well as laboratory method blanks when used for blank correction. The permittee shall collect at least one (1) field blank and at least one (1) field duplicate per sampling event. If more than 10 samples are collected during a sampling event, the permittee shall collect at least one (1) additional field blank AND field duplicate for every 10 samples collected. A "sampling event" shall be defined herein as all sampling for total mercury conducted on the same day, provided the same sampling team collected all samples using the same sampling methods, procedures, and equipment on that day. Only field blanks or laboratory method blanks may be used to calculate a concentration lower than the actual sample analytical results (i.e., a blank correction). Only one (1) blank (field OR laboratory method) may be used for blank correction of a given sample result, and only if the blank meets the quality control acceptance criteria. If blank correction is not performed on a given sample analytical result, the permittee shall report under "Total Mercury – Corrected" the same value reported under "Total Mercury – Uncorrected." The field duplicate is for quality control purposes only; its analytical result shall not be averaged with the sample result.

j. Whole Effluent Toxicity Final Requirements

Test species shall include fathead minnow **and** *Ceriodaphnia dubia*. Testing and reporting procedures shall follow procedures contained in EPA-821-R-02-013, "Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms" (Fourth Edition). When the effluent ammonia nitrogen (as N) concentration is greater than 3 mg/l, the pH of the toxicity test shall be maintained at a pH of 8 Standard Units. The acute toxic unit (TU_A) value and chronic toxic unit (TU_C) value for **each species tested** shall be reported on the DMR. If multiple chronic toxicity tests for the same species are performed during the month, the maximum TU_A value and monthly average TU_C value for the species shall be reported. For **each species not tested**, the permittee shall enter "***W**" on the DMR. (For purposes of reporting on the Daily tab of the DMR, the permittee shall enter "***W**" on the first day of the month only). Completed toxicity test reports for each test conducted shall be retained by the permittee in accordance with the requirements of Part II.B.5. of this permit and shall be available for review by the Department upon request. After 24 months of toxicity testing and upon approval from the Department, the monitoring frequency may be reduced if the test data indicate that the toxicity requirements of R 323.1219 of the Michigan Administrative Code are consistently being met. After one (1) year of toxicity testing and upon approval from the Department, the chronic toxicity tests may be performed using the more sensitive species identified in the chronic toxicity results collected to date. If a more sensitive species cannot be identified, the chronic toxicity tests shall be performed with both species. Toxicity test data acceptability is contingent upon validation of the test method by the testing laboratory. Such validation shall be submitted to the Department upon request.

1) When monitoring shows persistent exceedance of the 1.1 TU_C limit or the 1.0 TU_A limit for effluent toxicity, the Department will determine whether the permittee must implement the toxicity control program requirements specified in 2), below.

PART I**Section A. Limitations and Monitoring Requirements**

2) Upon written notification by the Department, the following conditions apply. Within 90 days of the notification, the permittee shall implement a Toxicity Reduction Evaluation (TRE). The objective of the TRE shall be to reduce the toxicity of the final effluent from Monitoring Point 001A to <1.1 TU_C and <1.0 TU_A. The following documents are available as guidance to reduce toxicity to acceptable levels: Phase I, EPA/600/6-91/005F (chronic), EPA/600/6-91/003 (acute); Phase II, EPA/600/R-92/080 (acute and chronic); Phase III, EPA/600/R-92/081 (acute and chronic); and Publicly Owned Treatment Works (POTWs), EPA/833B-99/002. Annual reports shall be submitted to the Department within 30 days of the completion of the last test of each annual cycle.

k. **Ammonia Nitrogen Certification**

On or before October 1, 2025, the permittee shall submit to the Department for review and approval written certification that the facility will be able to meet the Ammonia Nitrogen (as N) effluent limits effective October 1, 2026, as set forth in Part I.A.1., at the facility's annual average design flow. Submittal of this certification shall include an evaluation supporting the certification. At a minimum, the evaluation shall consider the facility design flow and other factors affecting nitrification at the facility. If the permittee is unable to certify that it will be able to meet the Ammonia Nitrogen (as N) limits effective October 1, 2026, the permittee shall also include an evaluation supporting the negative certification, and following Department review of that evaluation, this permit may be modified by the Department in accordance with applicable laws and rules.

PART I

Section A. Limitations and Monitoring Requirements

2. Quantification Levels and Analytical Methods for Selected Parameters

Maximum acceptable quantification levels (QLs) are specified for selected parameters in the table below. These QLs apply to all monitoring conducted in compliance with this permit if and when the parameters specified herein are monitored. This includes monitoring conducted to meet the requirements of the application for permit reissuance. These QLs shall be considered the maximum acceptable unless a higher QL is appropriate because of sample matrix interference. Justification for higher QLs shall be submitted to the Department within 30 days of such determination.

Where necessary to help ensure that the QLs specified herein can be achieved, analytical methods may also be specified in the table below. The sampling procedures, preservation and handling, and analytical protocol for all monitoring conducted in compliance with this permit, including monitoring conducted to meet the requirements of the application for permit reissuance, shall be in accordance with the methods specified herein, or in accordance with Part II.B.2. of this permit if no method is specified herein, unless an alternate method is approved by the Department. The Department will consider only alternate methods that meet the requirements of Part II.B.2. and whose QLs are at least as sensitive (i.e., low) as those specified herein. **Not all QLs are expressed in the same units in the table below.** The table is continued on the following page:

Parameter	QL	Units	Analytical Method
1,2-Diphenylhydrazine (as Azobenzene)	3.0	ug/l	
2,4,6-Trichlorophenol	5.0	ug/l	
2,4-Dinitrophenol	19	ug/l	
3,3'-Dichlorobenzidine	1.5	ug/l	
4-Chloro-3-Methylphenol	7.0	ug/l	
4,4'-DDD	0.01	ug/l	
4,4'-DDE	0.01	ug/l	
4,4'-DDT	0.01	ug/l	
Acrylonitrile	1.0	ug/l	
Aldrin	0.01	ug/l	
Alpha-Endosulfan	0.01	ug/l	
Alpha-Hexachlorocyclohexane	0.01	ug/l	
Antimony, Total	1	ug/l	
Arsenic, Total	1	ug/l	
Barium, Total	5	ug/l	
Benzidine	0.1	ug/l	
Beryllium, Total	1	ug/l	
Beta-Endosulfan	0.01	ug/l	
Beta-Hexachlorocyclohexane	0.01	ug/l	
Bis (2-Chloroethyl) Ether	1.0	ug/l	
Bis (2-Ethylhexyl) Phthalate	5.0	ug/l	
Boron, Total	20	ug/l	
Bromomethane, Total	1.0	ug/l	
Cadmium, Total	0.2	ug/l	
Chlordane	0.01	ug/l	
Chloride	1.0	mg/l	
Chromium, Hexavalent	5	ug/l	
Chromium, Total	10	ug/l	
Copper, Total	1	ug/l	

PART I**Section A. Limitations and Monitoring Requirements**

Parameter	QL	Units	Analytical Method
Cyanide, Available	2	ug/l	EPA Method OIA 1677
Cyanide, Total	5	ug/l	
Delta-Hexachlorocyclohexane	0.01	ug/l	
Dieldrin	0.01	ug/l	
Di-N-Butyl Phthalate	9.0	ug/l	
Endosulfan Sulfate	0.01	ug/l	
Endrin	0.01	ug/l	
Endrin Aldehyde	0.01	ug/l	
Fluoranthene	1.0	ug/l	
Heptachlor	0.01	ug/l	
Heptachlor Epoxide	0.01	ug/l	
Hexachlorobenzene	0.01	ug/l	
Hexachlorobutadiene	0.01	ug/l	
Hexachlorocyclopentadiene	0.01	ug/l	
Hexachloroethane	5.0	ug/l	
Lead, Total	1	ug/l	
Lindane	0.01	ug/l	
Lithium, Total	10	ug/l	
Mercury, Total	0.5	ng/l	EPA Method 1631E
Nickel, Total	5	ug/l	
PCB-1016	0.1	ug/l	
PCB-1221	0.1	ug/l	
PCB-1232	0.1	ug/l	
PCB-1242	0.1	ug/l	
PCB-1248	0.1	ug/l	
PCB-1254	0.1	ug/l	
PCB-1260	0.1	ug/l	
Pentachlorophenol	1.8	ug/l	
Perfluorooctanesulfonic acid (PFOS)	2.0	ng/l	While EPA Method 1633 remains draft, analyses may be performed using that method, or ASTM D7979, or an isotope dilution method (sometimes referred to as Method 537 modified). Once EPA Method 1633 is promulgated, only that method may be used.
Perfluorooctanoic acid (PFOA)			
Perfluorobutanesulfonic acid (PFBS)			
Phenanthrene	1.0	ug/l	
Selenium, Total	1.0	ug/l	
Silver, Total	0.5	ug/l	
Strontium, Total	1000	ug/l	
Sulfate	2.0	mg/l	
Sulfide, Total	20	ug/l	
Thallium, Total	1	ug/l	
Toxaphene	0.1	ug/l	
Vinyl Chloride	1.0	ug/l	
Zinc, Total	10	ug/l	

PART I**Section A. Limitations and Monitoring Requirements****3. Additional Monitoring Requirements**

As a condition of this permit, the permittee shall monitor the discharge from monitoring point 001A for the constituents identified below. This monitoring is an application requirement of 40 CFR 122.21(j), effective December 2, 1999. Testing shall be conducted in August 2024, May 2025, March 2026, and October 2026. Grab samples shall be collected for total phenols and the Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS) and Volatile Organic Compounds identified below. For all other parameters, 24-hour composite samples shall be collected.

The results of such additional monitoring shall be submitted with the application for reissuance (see the cover page of this permit for the application due date). The permittee shall notify the Department within 14 days of completing the monitoring for each month specified above in accordance with Part II.C.5. Additional reporting requirements are specified in Part II.C.11. If, upon review of the analysis, it is determined that additional requirements are needed to protect the receiving waters in accordance with applicable water quality standards, the permit may then be modified by the Department in accordance with applicable laws and rules.

Hardness

calcium carbonate

Perfluoroalkyl and Polyfluoroalkyl Substances

Perfluorooctanoic acid (PFOA) Perfluorobutanesulfonic acid (PFBS)

Metals (Total Recoverable), Cyanide and Total Phenolsantimony
seleniumchromium
thalliumlead
total phenolsnickel
zincVolatile Organic Compounds

acrolein	acrylonitrile
carbon tetrachloride	chlorobenzene
2-chloroethylvinyl ether	chloroform
1,2-dichloroethane	trans-1,2-dichloroethylene
1,3-dichloropropylene	ethylbenzene
methylene chloride	1,1,2,2-tetrachloroethane
1,1,1-trichloroethane	1,1,2-trichloroethane

benzene
chlorodibromomethane
dichlorobromomethane
1,1-dichloroethylene
methyl chloride
tetrachloroethylene
trichloroethylene

bromoform
chloroethane
1,1-dichloroethane
1,2-dichloropropane
toluene
vinyl chloride

Acid-Extractable Compounds

4-chloro-3-methylphenol	2-chlorophenol
4,6-dinitro-o-cresol	2,4-dinitrophenol
pentachlorophenol	phenol

2,4-dichlorophenol
2-nitrophenol
2,4,6-trichlorophenol

2,4-dimethylphenol
4-nitrophenol

Base/Neutral Compounds

acenaphthene	acenaphthylene
benzo(a)pyrene	3,4-benzofluoranthene
bis(2-chloroethoxy)methane	bis(2-chloroethyl)ether
bis(2-ethylhexyl)phthalate	4-bromophenyl phenyl ether
4-chlorophenyl phenyl ether	chrysene
dibenzo(a,h)anthracene	1,2-dichlorobenzene
3,3'-dichlorobenzidine	diethyl phthalate
2,6-dinitrotoluene	1,2-diphenylhydrazine
hexachlorobenzene	hexachlorobutadiene
indeno(1,2,3-cd)pyrene	isophorone
n-nitrosodi-n-propylamine	n-nitrosodimethylamine
pyrene	1,2,4-trichlorobenzene

anthracene
benzo(ghi)perylene
bis(2-chloroisopropyl)ether
butylbenzyl phthalate
di-n-butyl phthalate
1,3-dichlorobenzene
dimethyl phthalate
fluoranthene
hexachlorocyclopentadiene
naphthalene
n-nitrosodiphenylamine

benzo(a)anthracene
benzo(k)fluoranthene
2-chloronaphthalene
di-n-octyl phthalate
1,4-dichlorobenzene
2,4-dinitrotoluene
fluorene
hexachloroethane
nitrobenzene
phenanthrene

PART I**Section A. Limitations and Monitoring Requirements****4. Pollutant Minimization Program for Total Mercury**

The goal of the Pollutant Minimization Program is to maintain the effluent concentration of total mercury at or below 1.3 ng/l. The permittee shall continue to implement the Pollutant Minimization Program approved on May 17, 2005, and modifications thereto, to proceed toward the goal. The Pollutant Minimization Program includes the following:

- a. an annual review and semi-annual monitoring of potential sources of mercury entering the wastewater collection system;
- b. a program for quarterly monitoring of influent and periodic monitoring of sludge for mercury; and
- c. implementation of reasonable cost-effective control measures when sources of mercury are discovered. Factors to be considered include significance of sources, economic considerations, and technical and treatability considerations.

On or before March 31 of each year, the permittee shall submit a status report to the Department for the previous calendar year that includes 1) the monitoring results for the previous year, 2) an updated list of potential mercury sources, and 3) a summary of all actions taken to reduce or eliminate identified sources of mercury.

Any information generated as a result of the Pollutant Minimization Program set forth in this permit may be used to support a request to modify the approved program or to demonstrate that the Pollutant Minimization Program requirement has been completed satisfactorily.

A request for modification of the approved program and supporting documentation shall be submitted in writing to the Department for review and approval. The Department may approve modifications to the approved program (approval of a program modification does not require a permit modification), including a reduction in the frequency of the requirements under items a. and b. above.

This permit may be modified in accordance with applicable laws and rules to include additional mercury conditions and/or limitations as necessary.

PART I**Section A. Limitations and Monitoring Requirements****5. Pollutant Minimization and Source Evaluation Program for Perfluorooctanesulfonic Acid (PFOS), Perfluorooctanoic Acid (PFOA), and Perfluorobutanesulfonic Acid (PFBS)**

The goal of the Pollutant Minimization and Source Evaluation Program is to identify and address sources of PFOS, PFOA, and PFBS and to reduce and maintain the effluent concentrations of PFOS, PFOA, and PFBS at or below the water quality-based effluent limitations (WQBELs). The WQBELs are 12 ng/l for PFOS, 0.28 ug/l for PFOA, and 1,100 ug/l for PFBS.

- a. Within 90 days of written notification from the Department or after the permittee notifies the Department that final effluent concentrations of PFOS, PFOA, and/or PFBS have exceeded the WQBELs, the permittee shall submit to the Department an approvable Pollutant Minimization and Source Evaluation Program for the PFAS analyte(s) in exceedance of the WQBEL(s) to proceed toward the goal. The Pollutant Minimization and Source Evaluation Program shall include the following:
 - 1) identification of and strategies to identify any potential and probable PFOS, PFOA, and PFBS sources, as applicable;
 - 2) monitoring plan for the permitted facility's influent and effluent, as well as effluent from suspected sources;
 - 3) implemented measures thus far to eliminate, reduce, and/or control sources, and an assessment of the degree of success and the strategies used to measure success; and
 - 4) proposed measures and implementation schedules for elimination, control, and/or reduction of the identified sources (prioritizing highest loadings and concentrations), and the strategies that will be used to measure success.
- b. Two times annually, on or before February 1 and August 1 of each year following Department approval of the Pollutant Minimization and Source Evaluation Program, the permittee shall submit to the Department a status report for the prior six (6) month period. Status reports shall include:
 - 1) complete list of known or suspected PFOS, PFOA, and PFBS sources, as applicable;
 - 2) summary of influent and effluent monitoring data;
 - 3) summary of monitoring data from known or suspected sources;
 - 4) history and compliance status for sources;
 - 5) implemented measures to eliminate, reduce, or control sources, (prioritizing highest loadings and concentrations), and an assessment of the degree of success and the strategies used to measure success;
 - 6) proposed measures and schedules for elimination, control, or reduction of any newly identified PFOS, PFOA, and PFBS sources (prioritizing highest loadings and concentrations), as applicable, and the strategies that will be used to measure success;
 - 7) barriers to implementation and revisions to the implementation schedule; and
 - 8) any laboratory reports not previously supplied.

Any information generated as a result of the Pollutant Minimization and Source Evaluation Program set forth in this permit may be used to support a request to modify the Pollutant Minimization and Source Evaluation Program or to demonstrate that the requirement has been completed satisfactorily.

PART I

Section A. Limitations and Monitoring Requirements

A request for modification of the approved Pollutant Minimization and Source Evaluation Program shall be submitted in writing to the Department along with supporting documentation for review and approval. The Department may approve modifications to the approved Pollutant Minimization and Source Evaluation Program, including a reduction in the frequency of the influent and known or potential source monitoring requirements. Approval of a Pollutant Minimization and Source Evaluation Program modification does not require a permit modification.

This permit may be modified in accordance with applicable laws and rules to include additional PFOS, PFOA, and PFBS conditions and/or limitations as necessary.

6. Untreated or Partially Treated Sewage Discharge Reporting and Testing Requirements

In accordance with Section 324.3112a of the NREPA, if untreated or partially treated sewage is directly or indirectly discharged from a sewer system onto land or into the waters of the state, the permittee shall immediately, but not more than 24 hours after the discharge begins, notify local health departments, a daily newspaper of general circulation in the county in which the permittee is located, and a daily newspaper of general circulation in the county or counties in which the municipalities whose waters may be affected by the discharge are located, that the discharge is occurring. The permittee shall also notify the Department via its MiEnviro Portal system on the form entitled "Report of Discharge (CSO\SSO\RTB)." The MiEnviro Portal website is located at <https://mienviro.michigan.gov/ncore/>. At the conclusion of the discharge, the permittee shall make all such notifications specified in, and in accordance with, Section 324.3112a of the NREPA, and shall notify the Department via its MiEnviro Portal system on the form entitled "Report of Discharge (CSO\SSO\RTB)."

The permittee shall also annually contact municipalities, including the superintendent of a public drinking water supply with potentially affected intakes, whose waters may be affected by the permittee's discharge of untreated or partially treated sewage, and if those municipalities wish to be notified in the same manner as specified above, the permittee shall provide such notification.

Additionally, in accordance with Section 324.3112a of the NREPA, each time a discharge of untreated or partially treated sewage occurs, the permittee shall test the affected waters for *Escherichia coli* to assess the risk to the public health as a result of the discharge and shall provide the test results to the affected local county health departments and to the Department. The results of this testing shall be submitted to the Department via MiEnviro Portal as part of the notification specified above, or, if the results are not yet available, submitted as soon as they become available. This testing is not required if it has been waived by the local health department, or if the discharge(s) did not affect surface waters. The testing shall be done at locations specified by each affected local county health department but shall not exceed 10 tests for each separate discharge event. The affected local county health department may waive this testing requirement if it determines that such testing is not needed to assess the risk to the public health as a result of the discharge event.

Permittees accepting sanitary or municipal sewage from other sewage collection systems are encouraged to notify the owners of those systems of the above reporting and testing requirements.

PART I**Section A. Limitations and Monitoring Requirements****7. Facility Contact**

The "Facility Contact" was specified in the application. The permittee may replace the facility contact at any time, and shall notify the Department in writing within 10 days after replacement (including the name, address and telephone number of the new facility contact).

- a. The facility contact shall be (or a duly authorized representative of this person):
 - for a corporation, a principal executive officer of at least the level of vice president; or a designated representative if the representative is responsible for the overall operation of the facility from which the discharge originates, as described in the permit application or other NPDES form,
 - for a partnership, a general partner,
 - for a sole proprietorship, the proprietor, or
 - for a municipal, state, or other public facility, either a principal executive officer, the mayor, village president, city or village manager or other duly authorized employee.
- b. A person is a duly authorized representative only if:
 - the authorization is made in writing to the Department by a person described in paragraph a. of this section; and
 - the authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the facility (a duly authorized representative may thus be either a named individual or any individual occupying a named position).

Nothing in this section releases the permittee from properly submitting reports and forms as required by law.

8. Monthly Operating Reports

Part 41 of Act 451 of 1994 as amended, specifically Section 324.4106 and associated R 299.2953, requires that the permittee file with the Department, on forms prescribed by the Department, operating reports showing the effectiveness of the treatment facility operation and the quantity and quality of liquid wastes discharged into waters of the state. Applicable forms and guidance are available on the Department's web site at <https://www.michigan.gov/egle/about/Organization/Water-Resources/wastewater-construction>. The permittee may use alternate forms if they are consistent with the approved treatment facility monitoring program. Unless the Department provides written notification to the permittee that monthly submittal of operating reports is required, operating reports that result from implementation of the approved treatment facility monitoring program shall be maintained on site for a minimum of three (3) years and shall be made available to the Department for review upon request.

Within 30 days of the effective date of this permit, the permittee shall submit to the Department either a revised treatment facility monitoring program to address monitoring requirement changes reflected in this permit, or justification explaining why monitoring requirement changes reflected in this permit do not necessitate revisions to the treatment facility monitoring program. Upon receipt of approval from the Department and consistent with such approval, the permittee shall implement the approved revised treatment facility monitoring program.

PART I

Section A. Limitations and Monitoring Requirements

9. Asset Management

The permittee shall at all times properly operate and maintain all facilities (i.e., the sewer system and treatment works as defined in Part 41 of the NREPA), and control systems installed or used by the permittee to operate the sewer system and treatment works and achieve and maintain compliance with the conditions of this permit (also see Part II.D.3 of this permit). The requirements of an Asset Management Program function to achieve the goals of effective performance, adequate funding, and adequate operator staffing and training. Asset management is a planning process for ensuring that optimum value is gained for each asset and that financial resources are available to rehabilitate and replace those assets when necessary. Asset management is centered on a framework of five (5) core elements: the current state of the assets; the required sustainable level of service; the assets critical to sustained performance; the minimum life-cycle costs; and the best long-term funding strategy.

a. Asset Management Program Requirements

On or before May 1, 2014 (received August 12, 2019), the permittee shall submit to the Department an Asset Management Plan for review and approval. An approvable Asset Management Plan shall contain a schedule for the development and implementation of an Asset Management Program that meets the requirements outlined below in 1) – 4). A copy of any Asset Management Program requirements already completed by the permittee should be submitted as part of the Asset Management Plan. Upon approval by the Department the permittee shall implement the Asset Management Plan. (The permittee may choose to include the Operation and Maintenance Manual required under Part II.C.14. of this permit as part of their Asset Management Program).

1) *Maintenance Staff.* The permittee shall provide an adequate staff to carry out the operation, maintenance, repair, and testing functions required to ensure compliance with the terms and conditions of this permit. The level of staffing needed shall be determined by taking into account the work involved in operating the sewer system and treatment works, planning for and conducting maintenance, and complying with this permit.

2) *Collection System Map.* The permittee shall complete a map of the sewer collection system it owns and operates. The map shall be of sufficient detail and at a scale to allow easy interpretation. The collection system information shown on the map shall be based on current conditions and shall be kept up-to-date and available for review by the Department. **Note: Items below referencing combined sewer systems are not applicable to separate sewer systems.** Such map(s) shall include but not be limited to the following:

- a) all sanitary sewer lines and related manholes;
- b) all combined sewer lines, related manholes, catch basins and CSO regulators;
- c) all known or suspected connections between the sanitary sewer or combined sewer and storm drain systems;
- d) all outfalls, including the treatment plant outfall(s), combined sewer treatment facility outfalls, untreated CSOs, and any known SSOs;
- e) all pump stations and force mains;
- f) the wastewater treatment facility(ies), including all treatment processes;
- g) all surface waters (labeled);
- h) other major appurtenances such as inverted siphons and air release valves;

PART I**Section A. Limitations and Monitoring Requirements**

- i) a numbering system which uniquely identifies manholes, catch basins, overflow points, regulators and outfalls;
 - j) the scale and a north arrow;
 - k) the pipe diameter, date of installation, type of material, distance between manholes, and the direction of flow; and
 - l) the manhole interior material, rim elevation (optional), and invert elevations.
- 3) *Inventory and assessment of fixed assets.* The permittee shall complete an inventory and assessment of operations-related fixed assets including portions of the collection system owned and operated by the permittee. Fixed assets are assets that are normally stationary (e.g., pumps, blowers, buildings, manholes, and sewer lines). The inventory and assessment shall be based on current conditions and shall be kept up-to-date and available for review by the Department.
- a) The fixed asset inventory shall include the following:
 - (1) a brief description of the fixed asset, its design capacity (e.g., pump: 120 gallons per minute), its level of redundancy, and its tag number if applicable;
 - (2) the location of the fixed asset;
 - (3) the year the fixed asset was installed;
 - (4) the present condition of the fixed asset (e.g., excellent, good, fair, poor); and
 - (5) the current fixed asset (replacement) cost in dollars for year specified in accordance with approved schedules;
 - b) The fixed asset assessment shall include a "Business Risk Evaluation" that combines the probability of failure of the fixed asset and the criticality of the fixed asset, as follows:
 - (1) Rate the probability of failure of the fixed asset on a scale of 1-5 (low to high) using criteria such as maintenance history, failure history, and remaining percentage of useful life (or years remaining);
 - (2) Rate the criticality of the fixed asset on a scale of 1-5 (low to high) based on the consequence of failure versus the desired level of service for the facility; and
 - (3) Compute the Business Risk Factor of the fixed asset by multiplying the failure rating from (1) by the criticality rating from (2).
- 4) *Operation, Maintenance & Replacement (OM&R) Budget and Rate Sufficiency for the Sewer System and Treatment Works.* The permittee shall complete an assessment of its user rates and replacement fund, including the following:
- a) beginning and end dates of fiscal year;
 - b) name of the department, committee, board, or other organization that sets rates for the operation of the sewer system and treatment works;

PART I**Section A. Limitations and Monitoring Requirements**

- c) amount in the permittee's replacement fund in dollars for year specified in accordance with approved schedules;
- d) replacement fund strategy of all assets with a useful life of 20 years or less;
- e) expenditures for maintenance, corrective action and capital improvement taken during the fiscal year;
- f) OM&R budget for the fiscal year; and
- g) rate calculation demonstrating sufficient revenues to cover OM&R expenses. If the rate calculation shows there are insufficient revenues to cover OM&R expenses, the permittee shall document, within three (3) fiscal years after submittal of the Asset Management Plan, that there is at least one rate adjustment that reduces the revenue gap by at least 10 percent. The permittee may prepare and submit an alternate plan, subject to Department approval, for addressing the revenue gap. The ultimate goal of the Asset Management Program is to ensure sufficient revenues to cover OM&R expenses.

b. Annual Reporting

The permittee shall develop a written report that summarizes asset management activities completed during the previous year and planned for the upcoming year. The written report shall be submitted to the Department on or before July 31 of each year. The written report shall include:

- 1) a description of the staffing levels maintained during the year;
- 2) a description of inspections and maintenance activities conducted and corrective actions taken during the previous year;
- 3) expenditures for collection system maintenance activities, treatment works maintenance activities, corrective actions, and capital improvement during the previous year;
- 4) a summary of assets/areas identified for inspection/action (including capital improvement) in the upcoming year based on the five (5) core elements and the Business Risk Factors computed in accordance with condition a.3)b)(3) above;
- 5) a maintenance budget and capital improvement budget for the upcoming year that take into account implementation of an effective Asset Management Program that meets the five (5) core elements;
- 6) an updated asset inventory based on the original submission; and
- 7) an updated OM&R budget with an updated rate schedule that includes the amount of insufficient revenues, if any.

PART I**Section A. Limitations and Monitoring Requirements****10. Discharge Monitoring Report – Quality Assurance Study Program**

The permittee shall participate in the Discharge Monitoring Report – Quality Assurance (DMR-QA) Study Program. The purpose of the DMR-QA Study Program is to annually evaluate the proficiency of all in-house and/or contract laboratory(ies) that perform, on behalf of the facility authorized to discharge under this permit, the analytical testing required under this permit. In accordance with Section 308 of the Clean Water Act (33 U.S.C. § 1318); and R 323.2138 and R 323.2154 of Part 21, Wastewater Discharge Permits, promulgated under Part 31 of the NREPA, participation in the DMR-QA Study Program is required for all major facilities, and for minor facilities selected for participation by the Department.

Annually and in accordance with DMR-QA Study Program requirements and submittal due dates, the permittee shall submit to the Michigan DMR-QA Study Program state coordinator all documentation required by the DMR-QA Study. DMR-QA Study Program participation is required only for the analytes required under this permit and only when those analytes are also identified in the DMR-QA Study.

If the permitted facility's status as a major facility should change, participation in the DMR-QA Study Program may be reevaluated. Questions concerning participation in the DMR-QA Study Program should be directed to the Michigan DMR-QA Study Program state coordinator.

All forms and instructions required for participation in the DMR-QA Study Program, including submittal due dates and state coordinator contact information, can be found at <https://www.epa.gov/compliance/discharge-monitoring-report-quality-assurance-study-program>.

11. Continuous Monitoring

If continuous monitoring equipment is used and becomes temporarily inoperable, the permittee shall manually obtain a minimum of three (3) equally spaced grab samples/readings within each 24-hour period for the affected parameter(s). On such days, in the comment field on the Daily tab of the DMR, the permittee shall indicate "continuous monitoring system inoperable," the date on which the system is expected to become operable again, and the number of samples/readings obtained during each 24-hour period.

12. PFAS Data Reporting Requirements

The permittee shall submit the complete laboratory analysis of each PFAS sample. This may be in addition to required DMR reporting. Submittals shall be made via the MiEnviro Portal using the PFAS POTW Effluent Monitoring Report form. Until EPA Method 1633 is promulgated, the complete laboratory analysis of each PFAS sample shall constitute the first 28 analytes identified on the PFAS POTW Effluent Monitoring Report form. Following promulgation of EPA Method 1633, the complete laboratory analysis of each PFAS sample shall constitute all 40 analytes identified on the PFAS POTW Effluent Monitoring Report form.

PART I

Section B. Storm Water Pollution Prevention

Section B. Storm Water Pollution Prevention is not required for this permit.

PART I**Section C. Industrial Waste Pretreatment Program****1. Michigan Industrial Pretreatment Program**

- a. The permittee shall implement the Michigan Industrial Pretreatment Program (MIPP) approved on July 23, 1985, and any subsequent modifications approved up to the issuance of this permit.
- b. The permittee shall comply with R 323.2301 through R 323.2317 of the Michigan Administrative Code (Part 23 Rules) and the approved MIPP.
- c. The permittee shall have the legal authority and necessary interjurisdictional agreements that provide the basis for the implementation and enforcement of the approved MIPP throughout the service area. The legal authority and necessary interjurisdictional agreements shall include, at a minimum, the authority to carry out the activities specified in R 323.2306(a).
- d. The permittee shall develop procedures which describe, in sufficient detail, program commitments which enable implementation of the approved MIPP and the Part 23 Rules in accordance with R 323.2306(c).
- e. The permittee shall establish an interjurisdictional agreement (or comparable document) with all tributary governmental jurisdictions. Each interjurisdictional agreement shall contain, at a minimum, the following:
 - 1) identification of the agency responsible for the implementation and enforcement of the approved MIPP within the tributary governmental jurisdiction's boundaries; and
 - 2) the provision of the legal authority which provides the basis for the implementation and enforcement of the approved MIPP within the tributary governmental jurisdiction's boundaries
- f. The permittee shall prohibit discharges that:
 - 1) cause, in whole or in part, the permittee's failure to comply with any condition of this permit or the NREPA;
 - 2) restrict, in whole or in part, the permittee's management of biosolids;
 - 3) cause, in whole or in part, operational problems at the treatment facility or in its collection system;
 - 4) violate any of the general or specific prohibitions identified in R 323.2303(1) and (2);
 - 5) violate categorical standards identified in R 323.2311; and
 - 6) violate local limits established in accordance with R 323.2303(4).
- g. The permittee shall maintain a list of its nondomestic users that meet the criteria of a significant industrial user as identified in R 323.2302(cc).
- h. The permittee shall develop an enforcement response plan which describes, in sufficient detail, program commitments which will enable the enforcement of the approved MIPP and the Part 23 Rules in accordance with R 323.2306(g).
- i. The Department may require modifications to the approved MIPP which are necessary to ensure compliance with the Part 23 Rules in accordance with R 323.2309.

PART I**Section C. Industrial Waste Pretreatment Program**

- j. The permittee shall not implement changes or modifications to the approved MIPP without notification to the Department.
- k. The permittee shall maintain an adequate revenue structure and staffing level for effective implementation of the approved MIPP.
- l. The permittee shall develop and maintain, for a minimum of three (3) years, all records and information necessary to determine nondomestic user compliance with the Part 23 Rules and the approved MIPP. This period of retention shall be extended during the course of any unresolved enforcement action or litigation regarding a nondomestic user or when requested by the Department or the United States Environmental Protection Agency. All of the aforementioned records and information shall be made available upon request for inspection and copying by the Department and the United States Environmental Protection Agency.
- m. The permittee shall evaluate the approved MIPP for compliance with the Part 23 Rules and the prohibitions set forth in item f. above. Based upon this evaluation, the permittee shall propose to the Department all necessary changes or modifications to the approved MIPP no later than the next Industrial Pretreatment Program Annual Report due date (see item p. below).
- n. The permittee shall develop and enforce local limits to implement the prohibitions set forth in item f. above. Local limits shall be based upon data representative of actual conditions demonstrated in a maximum allowable headworks loading analysis. A technical evaluation of whether local limits need to be developed for the following pollutants shall be submitted to the Department by DRAFT DATE ONE YEAR FROM PERMIT EFFECTIVE DATE: Total Arsenic, Total Beryllium, Total Cadmium, Total Silver, Available Cyanide, and Total Benzidine. The submittal shall provide a technical evaluation of the basis upon which this determination was made which includes information regarding the maximum allowable headworks loading, collection system protection criteria, and worker health and safety, based upon data collected since the last local limits review.
- o. The permittee is required under this permit and R 323.2303(4) of the Michigan Administrative Code to review and update their local limits when:
 - 1) new pollutants are introduced;
 - 2) new pollutants that were previously unevaluated are identified;
 - 3) new water quality or biosolids standards are established or additional information becomes available about the nature of pollutants, such as removal rates and accumulation in biosolids; or
 - 4) substantial increases of pollutants are proposed as required in the notification of new or increased uses in accordance with the provisions of 40 CFR 122.42.
- p. On or before April 1 of each year, the permittee shall submit to the Department, as required by R 323.2310(8), an Industrial Pretreatment Program Annual Report on the status of program implementation and enforcement activities. The reporting period shall begin on January 1 and end on December 31. At a minimum, the Industrial Pretreatment Program Annual Report shall include:
 - 1) the Pretreatment Program Reports data identified in Appendix A to 40 CFR Part 127 – NPDES Electronic Reporting;

PART I**Section C. Industrial Waste Pretreatment Program**

- 2) a summary of changes to the approved MIPP that have not been previously reported to the Department;
- 3) a summary of results of all the sampling and analyses performed of the wastewater treatment plant's influent, effluent, and biosolids conducted in accordance with approved methods during the reporting period. The summary shall include the monthly average, daily maximum, quantification level, and number of samples analyzed for each pollutant. At a minimum, the results of analyses for all locally limited parameters for at least one monitoring event that tests influent, effluent and biosolids during the reporting period shall be submitted with each report, unless otherwise required by the Department. Sample collection shall be at intervals sufficient to provide pollutant removal rates, unless the pollutant is not measurable; and
- 4) any other relevant information requested by the Department.

PART I**Section D. Residuals Management Program****1. Residuals Management Program for Land Application of Biosolids**

The permittee is authorized to land-apply bulk biosolids or prepare bulk biosolids for land application in accordance with the permittee's approved Residuals Management Program (RMP) approved on May 6, 2002, and approved modifications thereto, and the requirements established in R 323.2401 through R 323.2418 of the Michigan Administrative Code (Part 24 Rules). The approved RMP, and any approved modifications thereto, are enforceable requirements of this permit. Incineration, landfilling and other residual disposal activities shall be conducted in accordance with Part II.D.7. of this permit. The Part 24 Rules can be obtained via the internet at <https://www.michigan.gov/egle/about/organization/water-resources/biosolids/laws-and-rules>.

a. Annual Report

On or before October 30 of each year, the permittee shall submit an annual report to the Department for the previous fiscal year of October 1 through September 30. The report shall be submitted electronically via the Department's MiEnviro Portal system at <https://mienviro.michigan.gov/ncore/>. At a minimum, the report shall contain:

1) a certification that current residuals management practices are in accordance with the approved RMP, or a proposal for modification to the approved RMP; and

2) a completed Annual Report Form for Reporting Biosolids, available at <https://mienviro.michigan.gov/ncore/>.

b. Modifications to the Approved RMP

Prior to implementation of modifications to the RMP, the permittee shall submit proposed modifications to the Department for approval. The approved modification shall become effective upon the date of approval. Upon written notification, the Department may impose additional requirements and/or limitations to the approved RMP as necessary to protect public health and the environment from any adverse effect of a pollutant in the biosolids.

c. Record Keeping

Records required by the Part 24 Rules shall be kept for a minimum of five (5) years. However, the records documenting cumulative loading for sites subject to cumulative pollutant loading rates shall be kept as long as the site receives biosolids.

d. Contact Information

RMP-related submittals shall be made to the Department.

PART II

Section A. Definitions

Part II may include terms and /or conditions not applicable to discharges covered under this permit.

Acute toxic unit (TUA) means 100/LC50 where the LC50 is determined from a whole effluent toxicity (WET) test which produces a result that is statistically or graphically estimated to be lethal to 50% of the test organisms.

Annual monitoring frequency refers to a calendar year beginning on January 1 and ending on December 31. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Authorized public agency means a state, local, or county agency that is designated pursuant to the provisions of Section 9110 of Part 91, Soil and Sedimentation Control, of the NREPA, to implement soil erosion and sedimentation control requirements with regard to construction activities undertaken by that agency.

Best management practices (BMPs) means structural devices or nonstructural practices that are designed to prevent pollutants from entering into storm water, to direct the flow of storm water, or to treat polluted storm water.

Bioaccumulative chemical of concern (BCC) means a chemical which, upon entering the surface waters, by itself or as its toxic transformation product, accumulates in aquatic organisms by a human health bioaccumulation factor of more than 1000 after considering metabolism and other physiochemical properties that might enhance or inhibit bioaccumulation. The human health bioaccumulation factor shall be derived according to R 323.1057(5). Chemicals with half-lives of less than 8 weeks in the water column, sediment, and biota are not BCCs. The minimum bioaccumulation concentration factor (BAF) information needed to define an organic chemical as a BCC is either a field-measured BAF or a BAF derived using the biota-sediment accumulation factor (BSAF) methodology. The minimum BAF information needed to define an inorganic chemical as a BCC, including an organometal, is either a field-measured BAF or a laboratory-measured bioconcentration factor (BCF). The BCCs to which these rules apply are identified in Table 5 of R 323.1057 of the Water Quality Standards.

Biosolids are the solid, semisolid, or liquid residues generated during the treatment of sanitary sewage or domestic sewage in a treatment works. This includes, but is not limited to, scum or solids removed in primary, secondary, or advanced wastewater treatment processes and a derivative of the removed scum or solids.

Bulk biosolids means biosolids that are not sold or given away in a bag or other container for application to a lawn or home garden.

CAFO means concentrated animal feeding operation.

Certificate of Coverage (COC) is a document, issued by the Department, which authorizes a discharge under a general permit.

Chronic toxic unit (TUC) means 100/MATC or 100/IC25, where the maximum acceptable toxicant concentration (MATC) and IC25 are expressed as a percent effluent in the test medium.

Class B biosolids refers to material that has met the Class B pathogen reduction requirements or equivalent treatment by a Process to Significantly Reduce Pathogens (PSRP) in accordance with the Part 24 Rules, Land Application of Biosolids, promulgated under Part 31 of the NREPA. Processes include aerobic digestion, composting, anaerobic digestion, lime stabilization and air drying.

Combined sewer system is a sewer system in which storm water runoff is combined with sanitary wastes.

PART II

Section A. Definitions

Composite sample is a sample collected over time, either by continuous sampling or by mixing discrete samples. A composite sample represents the average wastewater characteristics present during the compositing period. Various methods for compositing are available and are based on either time or flow-proportioning, the choice of which will depend on the permit requirements.

Continuous monitoring refers to sampling/readings that occur at regular and consistent intervals throughout a 24-hour period and at a frequency sufficient to capture data that are representative of the discharge. The maximum acceptable interval between samples/readings shall be one (1) hour.

Daily concentration

FOR PARAMETERS OTHER THAN pH, DISSOLVED OXYGEN, TEMPERATURE, AND CONDUCTIVITY – Daily concentration is the sum of the concentrations of the individual samples of a parameter taken within a calendar day divided by the number of samples taken within that calendar day. The daily concentration will be used to determine compliance with any maximum and minimum daily concentration limitations. For guidance and examples showing how to report and perform calculations using results below quantification levels, see the document entitled “Reporting Results Below Quantification,” available at <https://www.michigan.gov/-/media/Project/Websites/egle/Documents/Programs/WRD/MiEnviro/results-below-quantification.pdf>.

FOR pH, DISSOLVED OXYGEN, TEMPERATURE, AND CONDUCTIVITY – The daily concentration used to determine compliance with maximum daily pH, temperature, and conductivity limitations is the highest pH, temperature, and conductivity readings obtained within a calendar day. The daily concentration used to determine compliance with minimum daily pH and dissolved oxygen limitations is the lowest pH and dissolved oxygen readings obtained within a calendar day.

Daily loading is the total discharge by weight of a parameter discharged during any calendar day. This value is calculated by multiplying the daily concentration by the total daily flow and by the appropriate conversion factor. The daily loading will be used to determine compliance with any maximum daily loading limitations. When required by the permit, report the maximum calculated daily loading for the month in the “MAXIMUM” column under “QUANTITY OR LOADING” on the DMRs.

Daily monitoring frequency refers to a 24-hour day. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Department means the Michigan Department of Environment, Great Lakes, and Energy.

Detection level means the lowest concentration or amount of the target analyte that can be determined to be different from zero by a single measurement at a stated level of probability.

Discharge means the addition of any waste, waste effluent, wastewater, pollutant, or any combination thereof to any surface water of the state.

EC₅₀ means a statistically or graphically estimated concentration that is expected to cause 1 or more specified effects in 50% of a group of organisms under specified conditions.

Fecal coliform bacteria monthly

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – Fecal coliform bacteria monthly is the geometric mean of all daily concentrations determined during a discharge event. Days on which no daily concentration is determined shall not be used to determine the calculated monthly value. The calculated monthly value will be used to determine compliance with the maximum monthly fecal coliform bacteria limitations. When required by the permit, report the calculated monthly value in the “AVERAGE” column under “QUALITY OR CONCENTRATION” on the DMR. If the period in which the discharge event occurred was partially in each of two months, the calculated monthly value shall be reported on the DMR of the month in which the last day of discharge occurred.

PART II

Section A. Definitions

FOR ALL OTHER DISCHARGES – Fecal coliform bacteria monthly is the geometric mean of all daily concentrations determined during a reporting month. Days on which no daily concentration is determined shall not be used to determine the calculated monthly value. The calculated monthly value will be used to determine compliance with the maximum monthly fecal coliform bacteria limitations. When required by the permit, report the calculated monthly value in the “AVERAGE” column under “QUALITY OR CONCENTRATION” on the DMR.

Fecal coliform bacteria 7-day

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – Fecal coliform bacteria 7-day is the geometric mean of the daily concentrations determined during any 7 consecutive days of discharge during a discharge event. If the number of daily concentrations determined during the discharge event is less than 7 days, the number of actual daily concentrations determined shall be used for the calculation. Days on which no daily concentration is determined shall not be used to determine the value. The calculated 7-day value will be used to determine compliance with the maximum 7-day fecal coliform bacteria limitations. When required by the permit, report the maximum calculated 7-day geometric mean value for the month in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMRs. If the 7-day period was partially in each of two months, the value shall be reported on the DMR of the month in which the last day of discharge occurred.

FOR ALL OTHER DISCHARGES – Fecal coliform bacteria 7-day is the geometric mean of the daily concentrations determined during any 7 consecutive days in a reporting month. If the number of daily concentrations determined is less than 7, the actual number of daily concentrations determined shall be used for the calculation. Days on which no daily concentration is determined shall not be used to determine the value. The calculated 7-day value will be used to determine compliance with the maximum 7-day fecal coliform bacteria limitations. When required by the permit, report the maximum calculated 7-day geometric mean for the month in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMRs. The first calculation shall be made on day 7 of the reporting month, and the last calculation shall be made on the last day of the reporting month.

Flow-proportioned composite sample is a composite sample in which either a) the volume of each portion of the composite is proportional to the effluent flow rate at the time that portion is obtained; or b) a constant sample volume is obtained at varying time intervals proportional to the effluent flow rate.

General permit means an NPDES permit authorizing a category of similar discharges.

Geometric mean is the average of the logarithmic values of a base 10 data set, converted back to a base 10 number.

Grab sample is a single sample taken at neither a set time nor flow.

IC₂₅ means the toxicant concentration that would cause a 25% reduction in a nonquantal biological measurement for the test population.

Illicit connection means a physical connection to a municipal separate storm sewer system that primarily conveys non-storm water discharges other than uncontaminated groundwater into the storm sewer; or a physical connection not authorized or permitted by the local authority, where a local authority requires authorization or a permit for physical connections.

Illicit discharge means any discharge to, or seepage into, a municipal separate storm sewer system that is not composed entirely of storm water or uncontaminated groundwater. Illicit discharges include non-storm water discharges through pipes or other physical connections; dumping of motor vehicle fluids, household hazardous wastes, domestic animal wastes, or litter; collection and intentional dumping of grass clippings or leaf litter; or unauthorized discharges of sewage, industrial waste, restaurant wastes, or any other non-storm water waste directly into a separate storm sewer.

PART II

Section A. Definitions

Individual permit means a site-specific NPDES permit.

Inlet means a catch basin, roof drain, conduit, drain tile, retention pond riser pipe, sump pump, or other point where storm water or wastewater enters into a closed conveyance system prior to discharge off site or into waters of the state.

Interference is a discharge which, alone or in conjunction with a discharge or discharges from other sources, both: 1) inhibits or disrupts a POTW, its treatment processes or operations, or its sludge processes, use or disposal; and 2) therefore, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation) or, of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including Title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine Protection, Research and Sanctuaries Act. [This definition does not apply to sample matrix interference].

Land application means spraying or spreading biosolids or a biosolids derivative onto the land surface, injecting below the land surface, or incorporating into the soil so that the biosolids or biosolids derivative can either condition the soil or fertilize crops or vegetation grown in the soil.

LC₅₀ means a statistically or graphically estimated concentration that is expected to be lethal to 50% of a group of organisms under specified conditions.

Maximum acceptable toxicant concentration (MATC) means the concentration obtained by calculating the geometric mean of the lower and upper chronic limits from a chronic test. A lower chronic limit is the highest tested concentration that did not cause the occurrence of a specific adverse effect. An upper chronic limit is the lowest tested concentration which did cause the occurrence of a specific adverse effect and above which all tested concentrations caused such an occurrence.

Maximum extent practicable means implementation of best management practices by a public body to comply with an approved storm water management program as required by a national permit for a municipal separate storm sewer system, in a manner that is environmentally beneficial, technically feasible, and within the public body's legal authority.

MBTU/hr means million British Thermal Units per hour.

MGD means million gallons per day.

Monthly concentration is the sum of the daily concentrations determined during a reporting period divided by the number of daily concentrations determined. The calculated monthly concentration will be used to determine compliance with any maximum monthly concentration limitations. Days with no discharge shall not be used to determine the value. When required by the permit, report the calculated monthly concentration in the "AVERAGE" column under "QUALITY OR CONCENTRATION" on the DMR.

For minimum percent removal requirements, the monthly influent concentration and the monthly effluent concentration shall be determined. The calculated monthly percent removal, which is equal to 100 times the quantity [1 minus the quantity (monthly effluent concentration divided by the monthly influent concentration)], shall be reported in the "MINIMUM" column under "QUALITY OR CONCENTRATION" on the DMRs.

PART II

Section A. Definitions

Monthly loading is the sum of the daily loadings of a parameter divided by the number of daily loadings determined during a reporting period. The calculated monthly loading will be used to determine compliance with any maximum monthly loading limitations. Days with no discharge shall not be used to determine the value. When required by the permit, report the calculated monthly loading in the "AVERAGE" column under "QUANTITY OR LOADING" on the DMR.

Monthly monitoring frequency refers to a calendar month. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Municipal separate storm sewer means a conveyance or system of conveyances designed or used for collecting or conveying storm water which is not a combined sewer and which is not part of a POTW as defined in the Code of Federal Regulations at 40 CFR 122.2.

Municipal separate storm sewer system (MS4) means all separate storm sewers that are owned or operated by the United States, a state, city, village, township, county, district, association, or other public body created by or pursuant to state law, having jurisdiction over disposal of sewage, industrial wastes, storm water, or other wastes, including special districts under state law, such as a sewer district, flood control district, or drainage district, or similar entity, or a designated or approved management agency under Section 208 of the Clean Water Act that discharges to the waters of the state. This term includes systems similar to separate storm sewer systems in municipalities, such as systems at military bases, large hospital or prison complexes, and highways and other thoroughfares. The term does not include separate storm sewers in very discrete areas, such as individual buildings.

National Pretreatment Standards are the regulations promulgated by or to be promulgated by the Federal Environmental Protection Agency pursuant to Section 307(b) and (c) of the Clean Water Act. The standards establish nationwide limits for specific industrial categories for discharge to a POTW.

No observed adverse effect level (NOAEL) means the highest tested dose or concentration of a substance which results in no observed adverse effect in exposed test organisms where higher doses or concentrations result in an adverse effect.

Noncontact cooling water is water used for cooling which does not come into direct contact with any raw material, intermediate product, by-product, waste product or finished product.

Nondomestic user is any discharger to a POTW that discharges wastes other than or in addition to water-carried wastes from toilet, kitchen, laundry, bathing or other facilities used for household purposes.

Nonstructural controls are practices or procedures implemented by employees at a facility to manage storm water or to prevent contamination of storm water.

NPDES means National Pollutant Discharge Elimination System.

Outfall is the location at which a point source discharge first enters a surface water of the state.

Part 91 agency means an agency that is designated by a county board of commissioners pursuant to the provisions of Section 9105 of Part 91 of the NREPA; an agency that is designated by a city, village, or township in accordance with the provisions of Section 9106 of Part 91 of the NREPA; or the Department for soil erosion and sedimentation control activities under Part 615, Supervisor of Wells; Part 631, Reclamation of Mining Lands; or Part 632, Nonferrous Metallic Mineral Mining, of the NREPA, pursuant to the provisions of Section 9115 of Part 91 of the NREPA.

Part 91 permit means a soil erosion and sedimentation control permit issued by a Part 91 agency pursuant to the provisions of Part 91 of the NREPA.

PART II

Section A. Definitions

Partially treated sewage is any sewage, sewage and storm water, or sewage and wastewater, from domestic or industrial sources that is treated to a level less than that required by the permittee's NPDES permit, or that is not treated to national secondary treatment standards for wastewater, including discharges to surface waters from retention treatment facilities.

PFAS means perfluoroalkyl and polyfluoroalkyl substances.

Point of discharge is the location of a point source discharge where storm water is discharged directly into a separate storm sewer system.

Point source discharge means a discharge from any discernible, confined, discrete conveyance, including but not limited to any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, or rolling stock. Changing the surface of land or establishing grading patterns on land will result in a point source discharge where the runoff from the site is ultimately discharged to waters of the state.

Polluting material means any material, in solid or liquid form, identified as a polluting material under the Part 5 Rules, Spillage of Oil and Polluting Materials, promulgated under Part 31 of the NREPA (R 324.2001 through R 324.2009 of the Michigan Administrative Code).

POTW is a publicly owned treatment work.

Predevelopment is the last land use prior to the planned new development or redevelopment.

Pretreatment is reducing the amount of pollutants, eliminating pollutants, or altering the nature of pollutant properties to a less harmful state prior to discharge into a public sewer. The reduction or alteration can be by physical, chemical, or biological processes, process changes, or by other means. Dilution is not considered pretreatment unless expressly authorized by an applicable National Pretreatment Standard for a particular industrial category.

Public (as used in the MS4 individual permit) means all persons who potentially could affect the authorized storm water discharges, including, but not limited to, residents, visitors to the area, public employees, businesses, industries, and construction contractors and developers.

Public body means the United States; the state of Michigan; a city, village, township, county, school district, public college or university, or single-purpose governmental agency; or any other body which is created by federal or state statute or law.

Qualified Personnel means an individual who meets qualifications acceptable to the Department and who is authorized by an Industrial Storm Water Certified Operator to collect the storm water sample.

Qualifying storm event means a storm event causing greater than 0.1 inch of rainfall and occurring at least 72 hours after the previous measurable storm event that also caused greater than 0.1 inch of rainfall. Upon request, the Department may approve an alternate definition meeting the condition of a qualifying storm event.

Quantification level means the measurement of the concentration of a contaminant obtained by using a specified laboratory procedure calculated at a specified concentration above the detection level. It is considered the lowest concentration at which a particular contaminant can be quantitatively measured using a specified laboratory procedure for monitoring of the contaminant.

Quarterly monitoring frequency refers to a three-month period, defined as January through March, April through June, July through September, and October through December (or otherwise defined in the permit). When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

PART II

Section A. Definitions

Regional Administrator is the Region 5 Administrator, U.S. EPA, located at R-19J, 77 W. Jackson Blvd., Chicago, Illinois 60604.

Regulated area means the permittee's urbanized area, where urbanized area is defined as a place and its adjacent densely populated territory that together have a minimum population of 50,000 people as defined by the United States Bureau of the Census and as determined by the latest available decennial census.

Secondary containment structure means a unit, other than the primary container, in which significant materials are packaged or held, which is required by state or federal law to prevent the escape of significant materials by gravity into sewers, drains, or otherwise directly or indirectly into any sewer system or to the surface waters or groundwaters of the state.

Separate storm sewer system means a system of drainage, including, but not limited to, roads, catch basins, curbs, gutters, parking lots, ditches, conduits, pumping devices, or man-made channels, which is not a combined sewer where storm water mixes with sanitary wastes, and is not part of a POTW.

Significant industrial user is a nondomestic user that: 1) is subject to Categorical Pretreatment Standards under 40 CFR 403.6 and 40 CFR Chapter I, Subchapter N; or 2) discharges an average of 25,000 gallons per day or more of process wastewater to a POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); contributes a process waste stream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or is designated as such by the permittee as defined in 40 CFR 403.12(a) on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's treatment plant operation or violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

Significant materials means any material which could degrade or impair water quality, including but not limited to: raw materials; fuels; solvents, detergents, and plastic pellets; finished materials such as metallic products; hazardous substances designated under Section 101(14) of the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA) (see 40 CFR 372.65); any chemical the facility is required to report pursuant to Section 313 of Emergency Planning and Community Right-to-Know Act (EPCRA); polluting materials as identified under the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code); Hazardous Wastes as defined in Part 111, Hazardous Waste Management, of the NREPA; fertilizers; pesticides; and waste products such as ashes, slag, and sludge that have the potential to be released with storm water discharges.

Significant spills and significant leaks means any release of a polluting material reportable under the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code).

Special-use area means storm water discharges for which the Department has determined that additional monitoring is needed from: secondary containment structures required by state or federal law; lands on Michigan's List of Sites of Environmental Contamination pursuant to Part 201, Environmental Remediation, of the NREPA; and/or areas with other activities that may contribute pollutants to the storm water.

Stoichiometric means the quantity of a reagent calculated to be necessary and sufficient for a given chemical reaction.

Storm water means storm water runoff, snowmelt runoff, surface runoff and drainage, and non-storm water included under the conditions of this permit.

Storm water discharge point is the location where the point source discharge of storm water is directed to surface waters of the state or to a separate storm sewer. It includes the location of all point source discharges where storm water exits the facility, including outfalls which discharge directly to surface waters of the state, and points of discharge which discharge directly into separate storm sewer systems.

PART II

Section A. Definitions

Structural controls are physical features or structures used at a facility to manage or treat storm water.

SWPPP means the Storm Water Pollution Prevention Plan prepared in accordance with this permit.

Tier I value means a value for aquatic life, human health or wildlife calculated under R 323.1057 of the Water Quality Standards using a tier I toxicity database.

Tier II value means a value for aquatic life, human health or wildlife calculated under R 323.1057 of the Water Quality Standards using a tier II toxicity database.

Total maximum daily loads (TMDLs) are required by the Clean Water Act for waterbodies that do not meet water quality standards. TMDLs represent the maximum daily load of a pollutant that a waterbody can assimilate and meet water quality standards, and an allocation of that load among point sources, nonpoint sources, and a margin of safety.

Toxicity reduction evaluation (TRE) means a site-specific study conducted in a stepwise process designed to identify the causative agents of effluent toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in effluent toxicity.

Water Quality Standards means the Part 4 Water Quality Standards promulgated pursuant to Part 31 of the NREPA, being R 323.1041 through R 323.1117 of the Michigan Administrative Code.

Weekly monitoring frequency refers to a calendar week which begins on Sunday and ends on Saturday. When required by this permit, an analytical result, reading, value, or observation shall be reported for that period if a discharge occurs during that period. If the calendar week begins in one month and ends in the following month, the analytical result, reading, value, or observation shall be reported in the month in which monitoring was conducted.

WWSL is a wastewater stabilization lagoon.

WWSL discharge event is a discrete occurrence during which effluent is discharged to the surface water up to 10 days of a consecutive 14-day period.

3-portion composite sample is a sample consisting of three equal-volume grab samples collected at equal intervals over an 8-hour period.

7-day concentration

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – The 7-day concentration is the sum of the daily concentrations determined during any 7 consecutive days of discharge during a WWSL discharge event divided by the number of daily concentrations determined. If the number of daily concentrations determined during the WWSL discharge event is less than 7 days, the number of actual daily concentrations determined shall be used for the calculation. The calculated 7-day concentration will be used to determine compliance with any maximum 7-day concentration limitations. When required by the permit, report the maximum calculated 7-day concentration for the WWSL discharge event in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMR. If the WWSL discharge event was partially in each of two months, the value shall be reported on the DMR of the month in which the last day of discharge occurred.

FOR ALL OTHER DISCHARGES – The 7-day concentration is the sum of the daily concentrations determined during any 7 consecutive days in a reporting month divided by the number of daily concentrations determined. If the number of daily concentrations determined is less than 7, the actual number of daily concentrations determined shall be used for the calculation. The calculated 7-day concentration will be used to determine compliance with any maximum 7-day concentration limitations in the reporting month. When required by the permit, report the maximum calculated 7-day concentration for the month in the “MAXIMUM” column under

PART II

Section A. Definitions

“QUALITY OR CONCENTRATION” on the DMR. The first 7-day calculation shall be made on day 7 of the reporting month, and the last calculation shall be made on the last day of the reporting month.

7-day loading

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – The 7-day loading is the sum of the daily loadings determined during any 7 consecutive days of discharge during a WWSL discharge event divided by the number of daily loadings determined. If the number of daily loadings determined during the WWSL discharge event is less than 7 days, the number of actual daily loadings determined shall be used for the calculation. The calculated 7-day loading will be used to determine compliance with any maximum 7-day loading limitations. When required by the permit, report the maximum calculated 7-day loading for the WWSL discharge event in the “MAXIMUM” column under “QUANTITY OR LOADING” on the DMR. If the WWSL discharge event was partially in each of two months, the value shall be reported on the DMR of the month in which the last day of discharge occurred.

FOR ALL OTHER DISCHARGES – The 7-day loading is the sum of the daily loadings determined during any 7 consecutive days in a reporting month divided by the number of daily loadings determined. If the number of daily loadings determined is less than 7, the actual number of daily loadings determined shall be used for the calculation. The calculated 7-day loading will be used to determine compliance with any maximum 7-day loading limitations in the reporting month. When required by the permit, report the maximum calculated 7-day loading for the month in the “MAXIMUM” column under “QUANTITY OR LOADING” on the DMR. The first 7-day calculation shall be made on day 7 of the reporting month, and the last calculation shall be made on the last day of the reporting month.

24-hour composite sample is a flow-proportioned composite sample consisting of hourly or more frequent portions that are taken over a 24-hour period and in which the volume of each portion is proportional to the discharge flow rate at the time that portion is taken. A time-proportioned composite sample may be used upon approval from the Department if the permittee demonstrates it is representative of the discharge.

PART II

Section B. Monitoring Procedures

1. Representative Samples

Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge.

2. Test Procedures

Test procedures for the analysis of pollutants shall conform to regulations promulgated pursuant to Section 304(h) of the Clean Water Act (40 CFR Part 136 – Guidelines Establishing Test Procedures for the Analysis of Pollutants), unless specified otherwise in this permit. **Test procedures used shall be sufficiently sensitive to determine compliance with applicable effluent limitations.** For lists of approved test methods, go to <https://www.epa.gov/cwa-methods>. Requests to use test procedures not promulgated under 40 CFR Part 136 for pollutant monitoring required by this permit shall be made in accordance with the Alternate Test Procedures regulations specified in 40 CFR 136.4. These requests shall be submitted to the Manager of the Permits Section, Water Resources Division, Michigan Department of Environment, Great Lakes, and Energy, P.O. Box 30458, Lansing, Michigan, 48909-7958. The permittee may use such procedures upon approval.

The permittee shall periodically calibrate and perform maintenance procedures on all analytical instrumentation at intervals to ensure accuracy of measurements. The calibration and maintenance shall be performed as part of the permittee's laboratory Quality Assurance/Quality Control program.

3. Instrumentation

The permittee shall periodically calibrate and perform maintenance procedures on all monitoring instrumentation at intervals to ensure accuracy of measurements.

4. Recording Results

For each measurement or sample taken pursuant to the requirements of this permit, the permittee shall record the following information: 1) the exact place, date, and time of measurement or sampling; 2) the person(s) who performed the measurement or sample collection; 3) the dates the analyses were performed; 4) the person(s) who performed the analyses; 5) the analytical techniques or methods used; 6) the date of and person responsible for equipment calibration; and 7) the results of all required analyses.

5. Records Retention

All records and information resulting from the monitoring activities required by this permit, including all records of analyses performed, calibration and maintenance of instrumentation, and recordings from continuous monitoring instrumentation, shall be retained for a minimum of three (3) years, or longer if requested by the Regional Administrator or the Department.

PART II

Section C. Reporting Requirements

1. Start-Up Notification

The permittee shall notify the Department of start-up if one of the following conditions applies and in accordance with the applicable condition:

a. Non-CAFOs

1) **If this is an individual permit** and the permittee will not discharge during the first 60 days following the effective date of this permit, the permittee shall notify the Department via MiEnviro Portal within 14 days following the effective date of this permit, and then again 60 days prior to commencement of the discharge.

2) **If this is a general permit** and the permittee will not discharge during the first 60 days following the effective date of the Certificate of Coverage (COC) issued under this general permit, the permittee shall notify the Department via MiEnviro Portal within 14 days following the effective date of the COC, and then again 60 days prior to commencement of the discharge.

b. CAFOs

1) **If this is an individual permit** and the permittee will not populate with animals during the first 60 days following the effective date of this permit, the permittee shall notify the Department via MiEnviro Portal within 14 days following the effective date of this permit, and then again 60 days prior to populating with animals.

2) **If this is a general permit** and the permittee will not populate with animals during 60 days following the effective date of the Certificate of Coverage (COC) issued under this general permit, the permittee shall notify the Department via MiEnviro Portal within 14 days following the effective date of the COC, and then again 60 days prior to populating with animals.

2. Submittal Requirements for Self-Monitoring Data

Part 31 of the NREPA (specifically Section 324.3110(7)); and R 323.2155(2) of Part 21, Wastewater Discharge Permits, promulgated under Part 31 of the NREPA, allow the Department to specify the forms to be utilized for reporting the required self-monitoring data. Unless instructed on the effluent limitations page to conduct "Retained Self-Monitoring," the permittee shall submit self-monitoring data via the Department's MiEnviro Portal system.

The permittee shall utilize the information provided on the MiEnviro Portal website, located at <https://mienviro.michigan.gov/ncore/>, to access and submit the electronic forms. Both monthly summary and daily data shall be submitted to the Department no later than the 20th day of the month following each month of the authorized discharge period(s). The permittee may be allowed to submit the electronic forms after this date if the Department has granted an extension to the submittal date.

3. Retained Self-Monitoring Requirements

If instructed on the effluent limits page (or otherwise authorized by the Department in accordance with the provisions of this permit) to conduct retained self-monitoring, the permittee shall maintain a year-to-date log of retained self-monitoring results and, upon request, provide such log for inspection to the staff of the Department. Retained self-monitoring results are public information and shall be promptly provided to the public upon request.

The permittee shall certify, in writing, to the Department, on or before January 10 (April 1 for animal feeding operation facilities) of each year, that: 1) all retained self-monitoring requirements have been complied with and a year-to-date log has been maintained; and 2) the application on which this permit is based still accurately describes the discharge. With this annual certification, the permittee shall submit a summary of the previous

PART II

Section C. Reporting Requirements

year's monitoring data. The summary shall include maximum values for samples to be reported as daily maximums and/or monthly maximums and minimum values for any daily minimum samples.

Retained self-monitoring may be denied to a permittee by notification in writing from the Department. In such cases, the permittee shall submit self-monitoring data in accordance with Part II.C.2., above. Such a denial may be rescinded by the Department upon written notification to the permittee. Reissuance or modification of this permit or reissuance or modification of an individual permittee's authorization to discharge shall not affect previous approval or denial for retained self-monitoring unless the Department provides notification in writing to the permittee.

4. Additional Monitoring by Permittee

If the permittee monitors any pollutant at the location(s) designated herein more frequently than required by this permit, using approved analytical methods as specified above, the results of such monitoring shall be included in the calculation and reporting of the values required in the Discharge Monitoring Report. Such increased frequency shall also be indicated.

Monitoring required pursuant to Part 41 of the NREPA or Rule 35 of the Mobile Home Park Commission Act, 1987 PA 96, as amended, for assurance of proper facility operation, shall be submitted as required by the Department.

5. Compliance Dates Notification

Within 14 days of every compliance date specified in this permit, the permittee shall submit a written notification to the Department via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>) indicating whether or not the particular requirement was accomplished. If the requirement was not accomplished, the notification shall include an explanation of the failure to accomplish the requirement, actions taken or planned by the permittee to correct the situation, and an estimate of when the requirement will be accomplished. If a written report is required to be submitted by a specified date and the permittee accomplishes this, a separate written notification is not required.

6. Noncompliance Notification

Compliance with all applicable requirements set forth in the Clean Water Act, Parts 31 and 41 of the NREPA, and related regulations and rules is required. All instances of noncompliance shall be reported as follows:

- a. 24-Hour Reporting
Any noncompliance which may endanger health or the environment (including maximum and/or minimum daily concentration discharge limitation exceedances) shall be reported, verbally, within 24 hours from the time the permittee becomes aware of the noncompliance by calling the Department at the number indicated on the second page of this permit (or, if this is a general permit, on the COC). A written submission shall also be provided via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>) within five (5) days.
- b. Other Reporting
The permittee shall report, in writing via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>), all other instances of noncompliance not described in a. above at the time monitoring reports are submitted; or, in the case of retained self-monitoring, within five (5) days from the time the permittee becomes aware of the noncompliance.

Reporting shall include: 1) a description of the discharge and cause of noncompliance; and 2) the period of noncompliance, including exact dates and times, or, if not yet corrected, the anticipated time the noncompliance is expected to continue, and the steps taken to reduce, eliminate and prevent recurrence of the noncomplying discharge.

PART II

Section C. Reporting Requirements

7. Spill Notification

The permittee shall immediately report any release of any polluting material which occurs to the surface waters or groundwaters of the state, unless the permittee has determined that the release is not in excess of the threshold reporting quantities specified in the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code), by calling the Department at the number indicated on the second page of this permit (or, if this is a general permit, on the COC); or, if the notice is provided after regular working hours, by calling the Department's 24-hour Pollution Emergency Alerting System telephone number, 1-800-292-4706.

Within 10 days of the release, the permittee shall submit to the Department via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>) a full written explanation as to the cause of the release, the discovery of the release, response measures (clean-up and/or recovery) taken, and preventive measures taken or a schedule for completion of measures to be taken to prevent reoccurrence of similar releases.

8. Upset Noncompliance Notification

If a process "upset" (defined as an exceptional incident in which there is unintentional and temporary noncompliance with technology-based permit effluent limitations because of factors beyond the reasonable control of the permittee) has occurred, the permittee who wishes to establish the affirmative defense of upset shall notify the Department by telephone within 24 hours of becoming aware of such conditions; and within five (5) days, provide in writing, the following information:

- a. that an upset occurred and that the permittee can identify the specific cause(s) of the upset;
- b. that the permitted wastewater treatment facility was, at the time, being properly operated and maintained (note that an upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation); and
- c. that the permittee has specified and taken action on all responsible steps to minimize or correct any adverse impact in the environment resulting from noncompliance with this permit.

No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review.

In any enforcement proceedings, the permittee, seeking to establish the occurrence of an upset, has the burden of proof.

9. Bypass Prohibition and Notification

- a. Bypass Prohibition
Bypass is prohibited, and the Department may take an enforcement action, unless:
 - 1) bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;
 - 2) there were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass; and
 - 3) the permittee submitted notices as required under 9.b. or 9.c. below.

PART II

Section C. Reporting Requirements

- b. **Notice of Anticipated Bypass**
If the permittee knows in advance of the need for a bypass, the permittee shall submit written notification to the Department before the anticipated date of the bypass. This notification shall be submitted at least 10 days before the date of the bypass; however, the Department will accept fewer than 10 days advance notice if adequate explanation for this is provided. The notification shall provide information about the anticipated bypass as required by the Department. The Department may approve an anticipated bypass, after considering its adverse effects, if it will meet the three (3) conditions specified in a. above.
- c. **Notice of Unanticipated Bypass**
As soon as possible but no later than 24 hours from the time the permittee becomes aware of the unanticipated bypass, the permittee shall notify the Department by calling the number indicated on the second page of this permit (or, if this is a general permit, on the COC); or, if notification is provided after regular working hours, call the Department's 24-hour Pollution Emergency Alerting System telephone number, 1-800-292-4706.
- d. **Written Report of Bypass**
A written submission shall be provided within five (5) working days of commencing any bypass to the Department, and at additional times as directed by the Department. The written submission shall contain a description of the bypass and its cause; the period of bypass, including exact dates and times, and if the bypass has not been corrected, the anticipated time it is expected to continue; steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass; and other information as required by the Department.
- e. **Bypass Not Exceeding Limitations**
The permittee may allow any bypass to occur which does not cause effluent limitations to be exceeded, but only if it also is for essential maintenance to ensure efficient operation. These bypasses are not subject to the provisions of 9.a., 9.b., 9.c., and 9.d., above. This provision does not relieve the permittee of any notification responsibilities under Part II.C.11. of this permit.
- f. **Definitions**
 - 1) Bypass means the intentional diversion of waste streams from any portion of a treatment facility.
 - 2) Severe property damage means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

10. Bioaccumulative Chemicals of Concern (BCC)

Consistent with the requirements of R 323.1098 and R 323.1215 of the Michigan Administrative Code, the permittee is prohibited from undertaking any action that would result in a lowering of water quality from an increased loading of a BCC unless an increased use request and antidegradation demonstration have been submitted and approved by the Department.

11. Notification of Changes in Discharge

The permittee shall notify the Department via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>), as soon as possible but within no more than 10 days of knowing, or having reason to believe, that any activity or change has occurred or will occur which would result in the discharge of: 1) detectable levels of chemicals on the current Michigan Critical Materials Register, priority pollutants or hazardous substances set forth in 40 CFR 122.21, Appendix D, or the Pollutants of Initial Focus in the Great Lakes Water Quality Initiative specified in 40 CFR 132.6, Table 6, which were not acknowledged in the application or listed in the application at less than

PART II

Section C. Reporting Requirements

detectable levels; 2) detectable levels of any other chemical not listed in the application or listed at less than detection, for which the application specifically requested information; or 3) any chemical at levels greater than five times the average level reported in the complete application (see the first page of this permit, for the date(s) the complete application was submitted). Any other monitoring results obtained as a requirement of this permit shall be reported in accordance with the compliance schedules.

12. Changes in Facility Operations

Any anticipated action or activity, including but not limited to facility expansion, production increases, or process modification, which will result in new or increased loadings of pollutants to the receiving waters must be reported to the Department by a) submission of an increased use request (application) and all information required under R 323.1098 (Antidegradation) of the Water Quality Standards or b) by written notice if the following conditions are met: 1) the action or activity will not result in a change in the types of wastewater discharged or result in a greater quantity of wastewater than currently authorized by this permit; 2) the action or activity will not result in violations of the effluent limitations specified in this permit; 3) the action or activity is not prohibited by the requirements of Part II.C.10.; and 4) the action or activity will not require notification pursuant to Part II.C.11. Following such written notice, the permit or, if applicable, the facility's COC, may be modified according to applicable laws and rules to specify and limit any pollutant not previously limited.

13. Transfer of Ownership or Control

In the event of any change in ownership or control of facilities from which the authorized discharge emanates, the following requirements apply: Not less than 30 days prior to the actual transfer of ownership or control – for non-CAFOs, or within 30 days of the actual transfer of ownership or control – for CAFOs, the permittee shall submit to the Department via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>) a written agreement between the current permittee and the new permittee containing: 1) the legal name and address of the new owner; 2) a specific date for the effective transfer of permit responsibility, coverage and liability; and 3) a certification of the continuity of or any changes in operations, wastewater discharge, or wastewater treatment.

If the new permittee is proposing changes in operations, wastewater discharge, or wastewater treatment, the Department may propose modification of this permit in accordance with applicable laws and rules.

14. Operations and Maintenance Manual

For wastewater treatment facilities that serve the public (and are thus subject to Part 41 of the NREPA), Section 4104 of Part 41 and associated Rule 2957 of the Michigan Administrative Code allow the Department to require an Operations and Maintenance (O&M) Manual from the facility. An up-to-date copy of the O&M Manual shall be kept at the facility and shall be provided to the Department upon request. The Department may review the O&M Manual in whole or in part at its discretion and require modifications to it if portions are determined to be inadequate.

At a minimum, the O&M Manual shall include the following information: permit standards; descriptions and operation information for all equipment; staffing information; laboratory requirements; record keeping requirements; a maintenance plan for equipment; an emergency operating plan; safety program information; and copies of all pertinent forms, as-built plans, and manufacturer's manuals.

Certification of the existence and accuracy of the O&M Manual shall be submitted to the Department at least sixty days prior to start-up of a new wastewater treatment facility. Recertification shall be submitted sixty days prior to start-up of any substantial improvements or modifications made to an existing wastewater treatment facility.

PART II

Section C. Reporting Requirements

15. Signatory Requirements

All applications, reports, or information submitted to the Department in accordance with the conditions of this permit and that require a signature shall be signed and certified as described in the Clean Water Act and the NREPA.

The Clean Water Act provides that any person who knowingly makes any false statement, representation, or certification in any record or other document submitted or required to be maintained under this permit, including monitoring reports or reports of compliance or noncompliance, shall, upon conviction, be punished by a fine of not more than \$10,000 per violation, or by imprisonment for not more than 6 months per violation, or by both.

The NREPA (Section 3115(2)) provides that a person who at the time of the violation knew or should have known that he or she discharged a substance contrary to this part, or contrary to a permit, COC, or order issued or rule promulgated under this part, or who intentionally makes a false statement, representation, or certification in an application for or form pertaining to a permit or COC or in a notice or report required by the terms and conditions of an issued permit or COC, or who intentionally renders inaccurate a monitoring device or record required to be maintained by the Department, is guilty of a felony and shall be fined not less than \$2,500.00 or more than \$25,000.00 for each violation. The court may impose an additional fine of not more than \$25,000.00 for each day during which the unlawful discharge occurred. If the conviction is for a violation committed after a first conviction of the person under this subsection, the court shall impose a fine of not less than \$25,000.00 per day and not more than \$50,000.00 per day of violation. Upon conviction, in addition to a fine, the court in its discretion may sentence the defendant to imprisonment for not more than 2 years or impose probation upon a person for a violation of this part. With the exception of the issuance of criminal complaints, issuance of warrants, and the holding of an arraignment, the circuit court for the county in which the violation occurred has exclusive jurisdiction. However, the person shall not be subject to the penalties of this subsection if the discharge of the effluent is in conformance with and obedient to a rule, order, permit, or COC of the Department. In addition to a fine, the attorney general may file a civil suit in a court of competent jurisdiction to recover the full value of the injuries done to the natural resources of the state and the costs of surveillance and enforcement by the state resulting from the violation.

16. Electronic Reporting

Upon notice by the Department that electronic reporting tools are available for specific reports or notifications, the permittee shall submit electronically via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>) all such reports or notifications as required by this permit, on forms provided by the Department.

PART II

Section D. Management Responsibilities

1. Duty to Comply

All discharges authorized herein shall be consistent with the terms and conditions of this permit. The discharge of any pollutant identified in this permit, more frequently than, or at a level in excess of, that authorized, shall constitute a violation of the permit.

It is the duty of the permittee to comply with all the terms and conditions of this permit. Any noncompliance with the Effluent Limitations, Special Conditions, or terms of this permit constitutes a violation of the NREPA and/or the Clean Water Act and constitutes grounds for enforcement action; for permit or COC termination, revocation and reissuance, or modification; or denial of an application for permit or COC renewal.

It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit.

2. Operator Certification

The permittee shall have the waste treatment facilities under direct supervision of an operator certified at the appropriate level for the facility certification by the Department, as required by Sections 3110 and 4104 of the NREPA. Permittees authorized to discharge storm water shall have the storm water treatment and/or control measures under direct supervision of a storm water operator certified by the Department, as required by Section 3110 of the NREPA.

3. Facilities Operation

The permittee shall, at all times, properly operate and maintain all treatment or control facilities or systems installed or used by the permittee to achieve compliance with the terms and conditions of this permit. Proper operation and maintenance includes adequate laboratory controls and appropriate quality assurance procedures.

4. Power Failures

In order to maintain compliance with the effluent limitations of this permit and prevent unauthorized discharges, the permittee shall either:

- a. provide an alternative power source sufficient to operate facilities utilized by the permittee to maintain compliance with the effluent limitations and conditions of this permit; or
- b. upon the reduction, loss, or failure of one or more of the primary sources of power to facilities utilized by the permittee to maintain compliance with the effluent limitations and conditions of this permit, the permittee shall halt, reduce or otherwise control production and/or all discharge in order to maintain compliance with the effluent limitations and conditions of this permit.

5. Adverse Impact

The permittee shall take all reasonable steps to minimize or prevent any adverse impact to the surface waters or groundwaters of the state resulting from noncompliance with any effluent limitation specified in this permit including, but not limited to, such accelerated or additional monitoring as necessary to determine the nature and impact of the discharge in noncompliance.

6. Containment Facilities

The permittee shall provide facilities for containment of any accidental losses of polluting materials in accordance with the requirements of the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code). For a POTW, these facilities shall be approved under Part 41 of the NREPA.

PART II

Section D. Management Responsibilities

7. Waste Treatment Residues

Residuals (i.e., solids, sludges, biosolids, filter backwash, scrubber water, ash, grit, or other pollutants or wastes) removed from or resulting from treatment or control of wastewaters, including those that are generated during treatment or left over after treatment or control has ceased, shall be disposed of in an environmentally compatible manner and according to applicable laws and rules. These laws may include, but are not limited to, the NREPA, Part 31 for protection of water resources, Part 55 for air pollution control, Part 111 for hazardous waste management, Part 115 for solid waste management, Part 121 for liquid industrial wastes, Part 301 for protection of inland lakes and streams, and Part 303 for wetlands protection. Such disposal shall not result in any unlawful pollution of the air, surface waters or groundwaters of the state.

8. Right of Entry

The permittee shall allow the Department, any agent appointed by the Department, or the Regional Administrator, upon the presentation of credentials and, for animal feeding operation facilities, following appropriate biosecurity protocols:

- a. to enter upon the permittee's premises where an effluent source is located or any place in which records are required to be kept under the terms and conditions of this permit; and
- b. at reasonable times to have access to and copy any records required to be kept under the terms and conditions of this permit; to inspect process facilities, treatment works, monitoring methods and equipment regulated or required under this permit; and to sample any discharge of pollutants.

9. Availability of Reports

Except for data determined to be confidential under Section 308 of the Clean Water Act and Rule 2128 (R 323.2128 of the Michigan Administrative Code), all reports prepared in accordance with the terms of this permit and required to be submitted to the Department shall be available for public inspection via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>). As required by the Clean Water Act, effluent data shall not be considered confidential. Knowingly making any false statement on any such report may result in the imposition of criminal penalties as provided for in Section 309 of the Clean Water Act and Sections 3112, 3115, 4106 and 4110 of the NREPA.

10. Duty to Provide Information

The permittee shall furnish to the Department via MiEnviro Portal (<https://mienviro.michigan.gov/ncore/>), within a reasonable time, any information which the Department may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this permit or the facility's COC, or to determine compliance with this permit. The permittee shall also furnish to the Department, upon request, copies of records required to be kept by this permit.

Where the permittee becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Department, it shall promptly submit such facts or information.

PART II

Section E. Activities Not Authorized by This Permit

1. Discharge to the Groundwaters

This permit does not authorize any discharge to the groundwaters. Such discharge may be authorized by a groundwater discharge permit issued pursuant to the NREPA.

2. POTW Construction

This permit does not authorize or approve the construction or modification of any physical structures or facilities at a POTW. Approval for the construction or modification of any physical structures or facilities at a POTW shall be by permit issued under Part 41 of the NREPA.

3. Civil and Criminal Liability

Except as provided in permit conditions on "Bypass" (Part II.C.9. pursuant to 40 CFR 122.41(m)), nothing in this permit shall be construed to relieve the permittee from civil or criminal penalties for noncompliance, whether or not such noncompliance is due to factors beyond the permittee's control, such as accidents, equipment breakdowns, or labor disputes.

4. Oil and Hazardous Substance Liability

Nothing in this permit shall be construed to preclude the institution of any legal action or relieve the permittee from any responsibilities, liabilities, or penalties to which the permittee may be subject under Section 311 of the Clean Water Act except as are exempted by federal regulations.

5. State Laws

Nothing in this permit shall be construed to preclude the institution of any legal action or relieve the permittee from any responsibilities, liabilities, or penalties established pursuant to any applicable state law or regulation under authority preserved by Section 510 of the Clean Water Act.

6. Property Rights

The issuance of this permit does not convey any property rights in either real or personal property, or any exclusive privileges, nor does it authorize violation of any federal, state or local laws or regulations, nor does it obviate the necessity of obtaining such permits, including any other Department of Environment, Great Lakes, and Energy permits, or approvals from other units of government as may be required by law.